

FR- 20660/23

**IN THE HON'BLE HIGH COURT OF KARNATAKA AT
BENGALURU**

PRESENTATION FORM

FR. No. /2023

WRIT PETITION No.

/2023[LA-RES]

Serial No.		Bengaluru District	
Advocates: Sriyuthas: C. SHANKAR REDDY, B.A.L., LL.B., Y. NAGARAJ, B.A.L., LL.B., Advocates, No. 16, 6th Main, Gandhinagar, Bangaluru-560009 Ph.9845335106, 9880399609 anithashankarc@gmail.com		BETWEEN: Smt. Sarojamma And others AND: The State of Karnataka And others	
SI No.	Description of Paper Presented	Court Fee Affixed On the Paper	
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2.	On the Memo of Appeal		
3.	On the Memo of Petition		
4.	On Vakalath On AWF		
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[C. SHANKAR REDDY]

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**IN THE HIGH COURT OF KARNATAKA
AT BENGALURU**

WRIT PETITION No. / 2023 [LA-RES]

BETWEEN:

Smt. Sarojamma
and others

Petitioners

AND:

The State of Karnataka
and others

Respondents

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Bengaluru,

Dated: .09.2023

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**IN THE HIGH COURT OF KARNATAKA
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and others

Petitioners

AND:

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Respondents

SYNOPSIS

Sl. No.	LIST OF DATES	LIST OF EVENTS
1.	24.05.1999	A civil suit in O.S. No.49/2009 came to filed by the late Shivarudraiah alias Rudrappa, the husband of the petitioner no.1 and father of the petitioners no.2 and 3 against one Siddagangaiah on the file of the honourable court of the Senior Civil Judge, Nelamangala for the relief of declaration, permanent injunction and allied reliefs with regard to the suit schedule properties therein.
2.	29.09.2018	The said suit in O.S. No.49/2009 came to be partly decreed by the honourable trial court by passing a judgement and decree dated 29.09.2018.
3.	08.12.2020	The Preliminary Notification came to be issued under Section 28[1] of the KIADB Act in No. CI 242 SPQ [E] 2020 dated 08.12.2020 for the purposes of Multi Modal Logistics Park [MMLP].
4.	11.08.2021	The Final Notification came to be issued in Karnataka Special Gazette-Part 3 Pages 67879 to 7054 in No. CI 242 SCQ[E] 2020 dated 08.12.2020, which was published on 11.08.2021.

5.	September 2022	In the month of September, 2022, both the respondents no.3 and 4, the said Siddalingappa and Paramesh, by suppressing true and relevant facts have executed indemnity bonds stating that in case if the information furnished by them are false and not entitled to receive the entire compensation and in case it has to be paid to some other person, the entire or any part of compensation according to the circumstances will be returned. The parties have undertaken to refund the amount to the Government.
6.	05.09.2022	Respondents no.3 and 4 have received compensation as per the Receipt and Statement dated 05.09.2022 in respect of 13 guntas of land in survey number 36/2 of Obalapura village.
7.	12.12.2022	The petitioners issued a Legal Notice dated 12.12.2022 to the respondents no.1 to 4, demanding for payment of Rs.35,75,000=00 compensation due to them with interest from the date of receipt of the compensation being 05.09.2022 as per Statement dated 05.09.2022 executed by the respondent no.2 to respondents no.3 and 4. However, the said respondents' no.1 and 2 have failed to comply with the lawful demands made in the said legal notice and the respondents' no.3 and 4 have deliberately avoided to receive the said legal notice.
8.	22.12.2022	The petitioner herein had issued legal notice dated 12.12.2022 a Memo/Notice dated 22.12.2022 to the respondents no.1 and 2, furnishing a copy of judgement and decree dated 29.09.2018 passed in the said O.S. No.49/2009 and the same as been received by the respondents no.1 and 2 and inspite of the same, the respondents no.1 and 2 have failed to make good of the said Rs.35,75,000=00 along with the interest to the petitioners.

BRIEF FACTS OF THE CASE

1. The petitioners submit that one Sri. Rudraiah was the propositus of their family. The said Rudraiah had five sons, namely [1] Sri. Veerabhadraiah, [2] Sri. Chikkayellaiah, [3] Sri. Yellaiah, [4] Sri. Eraiah and [5] Sri. Gangaiah. Rudraiah had immovable properties and the same were divided among his five sons. After the partition, one of his son, namely Gangaiah died issueless. After the death of Gangaiah, the properties allotted to Gangaiah were again partitioned by his four brothers. Under the partition among other properties, land bearing survey number 36/2 to an extent of 13 guntas was allotted to the share of Veerabhadraiah. The said Veerabhadraiah, Chikkayellaiah, Yellaiah and Eraiah were in possession of their respective properties. Shivarudraiah is the only son of Veerabhadraiah. After the death of Veerabhadraiah, the said Shivarudraiah has succeeded the estate and became the absolute owner and in possession and enjoyment of the said properties, including land bearing survey number 36/2 measuring 13 guntas.

2. One Siddalingaiah, son of Chikkayellappa raised untenable dispute in regard to certain properties, including that of survey number 36/2 measuring 13 guntas, situated at Obalapura Village. Hence, the husband of the petitioner no.1 and father of petitioners no.2 and 3 filed a civil suit in O.S. No.49/2009 against the said Siddagangaiah on the file of the honourable court of the Senior Civil Judge, Nelamangala for the relief of declaration to declare that he is the absolute owner of the suit schedule properties of which survey number 36 measuring 13 guntas, situated at Obalapura Village, Thyamagondlu Hobli, Bengaluru Rural District is one mentioned in suit schedule 27. Further, it is submitted that during the pendency

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of the said O.S. No.49/2009, the husband of the petitioner no.1 died and the legal representatives, the petitioners' no.1, 2 and 3 herein were brought on record. Further, the petitioners submit that the said suit in O.S. No.49/2009, after contest was decreed as per judgment dated 29.09.2018. By which it is declared among other properties, the land bearing survey number 36 measuring 13 guntas referred to above as owner in possession of the said land also. The petitioners submit that the said judgment and decree have become final.

3. As the matter stood so, notifications were issued under Section 28[1] of the Karnataka Industrial Area Development Board Act for acquiring land bearing survey number 36 to an extent of 02 acres 32 guntas, showing the name of Doddayellaiah, Chikkayellaiah and others. Further, the petitioners submit that respondent no.3, Siddalingappa, son of Doddayellaiah, son of Doddayellalah @ Yellaiah of Obalapura and respondent no.4, Paramesha, son of Rudraiah, grandson of Chikkayellaiah both have colluded together and by fraud claimed entire compensation payable in respect of land bearing survey number 36/2 measuring 01 acre 11 guntas, stating that the entire extent belong to them solely. The petitioners submit that the respondent no.2, the Special Land Acquisition Officer, KIADB, has collected some documents before paying compensation amount to the respondents no.3 and 4. The respondent no.2, out of the total amount of compensation awarded being 1,40,25,000/- half of it being Rs.70,12,500/- was paid to Siddalingappa, the respondent no.3 herein and another half to Paramesh, the respondent no.4 herein. Both the parties have received the compensation amount payable to the petitioners.

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towards 13 guntas of compensation and liable to be refunded to the petitioners herein.

4. The petitioners submit that on account of not investigating the ownership properly by the respondent no.2, the said Siddalingappa and Paramesh, the respondents no.3 and 4 herein having suppressed true facts and obtained compensation. They have executed indemnity bonds stating that in case if the information furnished by them are false and not entitled to receive the entire compensation and in case it has to be paid to some other person, the entire or any part of compensation according to the circumstances will be returned. The parties have undertaken to refund the amount to the Government. In addition to it, loans and expenses have also to be paid etc.

5. The lower authorities failed to consider the vested interest of other claimants with regard to land involved in the case while considering and awarding compensation for the land by failing to issue by issuing notices to all the interested persons in the said land, including the petitioners herein who have been considered and held to be owners of 13 guntas of land in survey number 36/2, situated at Obalapura Village, Thyamagondlu Hobli, Bengaluru Rural District in O.S. No.49/2009, while passing a judgement and decree dated 29.09.2018 therein and the same as resulted in passing the impugned Award erroneously by the lower authorities, causing serious miscarriage of justice and seriously jeopardising and affecting the valid rights of ownership over the said 13 guntas over which the petitioners were entitled to a compensation of Rs.35,75,000=00 towards their 13 guntas of land of Obalapura.

(6)

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6. Therefore, the petitioners with no other alternative and efficacious remedy have come up with the above writ petition, seeking for directions by this honourable court against the respondents no.1 and 2 to recover the compensation amounts awarded and wrongly disbursed in favour of respondents no.3 and 4, amounting to Rs.35,75,000=00 and for directing the respondents no.1 and 2 to disburse the said Rs.35,75,000=00 to the petitioners herein along with interest from the date of disbursal of compensation amount of Rs.1,40,25,000=00 and pay the said Rs.35,75,000=00 to the petitioners herein together with all the interest payable to them under the Land Acquisition Act like Solasium, etc., in the interest of justice and equity. Hence, the above writ petition came to be filed.

Bengaluru,

Dated: .09.2023

Advocate for Petitioners

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F.R. NO.

/ 2023

**IN THE HIGH COURT OF KARNATAKA
AT BENGALURU
[ORIGINAL JURISDICTION]**

WRIT PETITION NO.

/ 2023[LA-RES]

BETWEEN:

1. Smt. Sarojamma
Aged about 55 years,
Wife of late Sri. Shivarudraiah,

2. Sri. Shivu
Aged about 39 years,
Son of late Sri. Shivarudraiah,

3. Sri. Veerabhadra
Aged about 30 years,
Son of late Sri. Shivarudraiah,

The Respondents No.1 to 3 are
residing at Hadihosahalli village,
Thyamagondlu Hobli, Nelamangala Taluk,
Bengaluru Rural District-562132.

Petitioners

AND:

1. The State of Karnataka
Commerce and Industries Department,
Vikasa Soudha, Dr. Ambedkar Veedhi,
Bengaluru-560001.
Represented by its Secretary.

2. The Special Land Acquisition
Officer, KIADB,
No.39, "Shanthi Gruha",
Bharath Scouts and Guides Building,
4th Floor, Palace Road,
Bengaluru-560001.
Represented by its Commissioner.

3. Sri. Siddalingappa
Aged about 68 years,

Son of Late Sri. Doddayellaiah,
Residing at Obalapura Village,
Thyamagondlu Hobli,
Bengaluru Rural District-562132.

4. Sri. Paramesh
Aged about 51 years,
Son of Late Sri. Chikkayellaiah,
Residing at Obalapura Village,
Thyamagondlu Hobli,
Bengaluru Rural District-562132.

Respondents

**MEMORANDUM OF WRIT PETITION PRESENTED UNDER
ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA**

The Petitioners above named submit as follows;

BRIEF FACTS OF THE CASE

1. The petitioners submit that the petitioner no.1 is the wife of late Shivarudraiah alias Rudrappa and the petitioners no.2 and 3 are the sons of the late Shivarudraiah alias Rudrappa and the petitioner no.1 herein. The petitioners submit that they are the owners in possession of the immovable property bearing survey number 36, measuring 13 guntas, situate at Obalapura village, Thyamagondlu Hobli, Nelamangala Taluk, Bengaluru Rural District, which is the subject matter of this writ petition.

2. The petitioners submit that one Sri. Rudraiah was the propositus of their family. The said Rudraiah had five sons, namely [1] Sri. Veerabhadraiah, [2] Sri. Chikkayellaiah, [3] Sri. Yellaiah, [4] Sri. Eraiah and [5] Sri. Gangaiah. Rudraiah had immovable properties and the same were divided amongst his five sons. After the partition, Gangaiah died issueless. After the death of Gangaiah, the properties allotted to Gangaiah were again partitioned by his four

brothers. Under the partition among other properties, land bearing survey number 36 to an extent of 13 guntas was allotted to the share of Veerabhadraiah. The said Veerabhadraiah, Chikkayellaiah, Yellaiah and Eraiah were in possession of their respective properties. Shivarudraiah is the only son of Veerabhadraiah. After the death of Veerabhadraiah, the said Shivarudraiah has succeeded the estate and became the absolute owner and in possession and enjoyment of the said properties.

3. The petitioners submit that Chikkayellaiah had three sons, i.e. Siddagangaiah, Rudraiah and Veerabhadraiah. Under the family partition, the said Chikkayellaiah got the property bearing survey number 36 measuring 20 guntas, survey number 37/1 measuring 27 guntas, survey number 18/2B measuring 10 guntas at Obalapura. Similarly, he also got properties in survey number 1/3 measuring 15 guntas, survey number 20/2 measuring 26 guntas, survey number 11/1 measuring 03 acres 20 guntas, survey number 13/67 measuring 20 guntas and in survey number 13/8 measuring 01 acre 20 guntas of Hadihosahalli Village. Apart from that, Chikkayellaiah had also acquired 20 guntas in survey number 20/2. The petitioners submit that the said Siddagangaiah and his brothers have been in possession and enjoyment of the properties allotted to the share of Chikkayellaiah. But, the said Siddagangaiah's family has no other properties at Hadihosahalli and Obalapura.

4. Further, the petitioners submit that the said late Shivarudraiah, the husband of petitioner no.1 and father of the petitioners no.2 and 3 filed a civil suit in O.S. No.49/2009 on the file of the honourable court of the Senior Civil Judge, Nelamangala against

Siddalingaiah, son of Chikkayellappa also called as Chikkayellaiah for the relief of declaration to declare that he is the absolute owner of the suit schedule properties of which survey number 36 measuring 13 guntas, situated at Obalapura Village, Thyamagondlu Hobli, Bengaluru Rural District is one mentioned in suit schedule 27. The suit schedule items includes 13 guntas of land in survey number 36 bounded on the East by: Rudraiah's property, West by: Papanna's property, North by: Kaluve and on the South by: Siddalingappa's property.

5. Further, the petitioners submit that the said suit in O.S. No.49/2009, after contest was decreed as per judgment dated 29.09.2018. By which it is declared among other properties, the land bearing survey number 36 measuring 13 guntas referred to above as owner in possession of the said land also.

6. In the said suit in O.S. No.49/2009, the respondent no.3, Siddalingappa herein in the above writ petition has tendered evidence in the said O.S. No.49/2009 as DW-4 and in the said deposition, the said respondent no.3 herein as clearly admitted that the petitioners in the above petition are the owners of the said 13 guntas of Sy. No.36/2 of the said Obalapura Village and the respondent no.3 herein has also clearly admitted that the petitioners herein are owners of the other properties claimed in the said suit as wife and children of the deceased Shivarudraiah who was the husband and father of the petitioners no.1, 2 and 3 respectively.

7. Further, it is submitted that during the pendency of the said O.S. No.49/2009, the husband of the petitioner no.1 died and the

legal representatives, the petitioners' no.1, 2 and 3 herein were brought on record. The petitioners submit that the said judgment and decree have become final. The petitioners submit that, immediately after the said suit was decreed, they by oversight did not move the revenue authorities for bringing up their names in the Mutation and RTC records. However, on 04.02.2021, the petitioners have filed petition to Tahsildar, Nelamangala for bringing their names in Mutation and RTC records in accordance with the judgment and decree passed in O.S. No.49/2009 referred to above and the matter is pending. The true copy of the judgement and decree dated 29.09.2018 made in O.S. No.49/2009 passed by the honourable court of the Senior Civil Judge, Nelamangala is produced as **ANNEXURE 'A'** for the kind perusal of this honourable court.

8. The petitioners submit that the notifications were issued under Section 28[1] of the Karnataka Industrial Area Development Board Act for acquiring land bearing survey number 36 to an extent of 02 acres 32 guntas, showing the name of Doddayellaiah, Chikkayellaiah and others. The Preliminary Notification was issued under Section 28[1] of the KIADB Act in No. CI 242 SPQ [E] 2020 dated 08.12.2020 for the purposes of Multi Modal Logistics Park [MMLP] and the Final Notification was issued in Karnataka Special Gazette-Part 3 Pages 67879 to 7054 in No. CI 242 SCQ[E] 2020 dated 08.12.2020 which was published on 11.08.2021. In the Final Notification published in Karnataka Gazette dated 11.08.2021 in Column No.3, the name of the owners of the land bearing survey number 36/2 is mentioned as "Doddayellaiah, Chikkayellaiah" who had died long back. The notifications in question are issued in the

names of dead persons, without proper enquiry, mechanically the names are shown in the notifications mentioned on the basis of entries available in RTC without verifying such persons are dead or alive. The subordinates of respondent no.2 have without proper enquiry, have mechanically copied both the names found in the RTC relating to land in question and hence, they are not binding on the owners. The true copy of the Final Notification issued in Karnataka Special Gazette-Part 3 Pages 67879 to 7054 in No. CI 242 SCQ[E] 2020 dated 08.12.2020 which was published on 11.08.2021 is produced as **ANNEXURE 'B'**.

9. Further, the petitioners submit that one Siddalingappa, son of Doddayellaiah, son of Doddayellaiah @ Yellaiah of Obalapura and Paramesha, son of Rudraiah, grandson of Chikkayellaiah both have colluded together and claimed entire compensation payable in respect of land bearing survey number 36/2 measuring 01 acre 11 guntas, stating that the entire extent belong to them solely. One Rudraiah was the propositus and he had 5 sons by name Veerabhadraiah, Chikkayellaiah, Yellaiah, Eraiah and Gangaiah. Immovable properties owned by Rudraiah were divided among 5 sons. After partition, Gangaiah died issueless. After his death, the properties allotted to Gangaiah were again partitioned by his 4 brothers. Under the partition, land bearing survey number 36/2 to an extent of 13 guntas fell to the share of Veerabhadraiah, the father-in-law of petitioner no.1. After the death of Veerabhadraiah, the husband of the petitioner no.1 and father of petitioners no.2 and 3 succeeded to the estate of Veerabhadraiah became absolute owners of all the properties, including land bearing survey number 36 measuring 13 guntas.

10. Since, the said Siddalingaiah, son of Chikkayellappa raised untenable dispute in regard to certain properties, including that of survey number 36/2 measuring 13 guntas, situated at Obalapura Village, the husband of the petitioner no.1 and father of petitioners no.2 and 3 filed a suit in O.S. No.49/2009 on the file of the honourable Senior Civil Judge, Nelamangala, praying for declaration and other reliefs in respect of the lands to which the husband of the petitioner no.1 inherited which include survey number 36, situated at Obalapura Village, Thyamagondlu Hobli, Nelamangala Taluk and the same is bounded on the East by: Rudraiah's property, West by: Papanna's property, North by: Kaluve, South by: Siddalingappa's property. After contest, the honourable court was pleased to decree the suit as per judgment and decree dated 29.09.2018 passed in O.S. No.49/2009. Thus, it is clear that the grandson of Chikkayellaiah by name Paramesh, son of Rudraiah and Siddalingappa, son of Doddayellappa by fraud, claim that they are owners of the entire extent of the property bearing survey number 36/2 referred to above. The said Paramesh in the Indemnity bond executed by him which is submitted to the Special Land Acquisition Officer who has described himself as "ಶ್ರೀ ಪರಮೇಶ್ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲ @ ಯಲ್ಲಯ್ಯ, ಓಬಲ್ಪುರ ವಿಲ್ಲೇಜ್, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಲಿ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು" which is admittedly false and that Paramesh has to be dealt with accordingly for having created the document in respect of immovable property which amounts to be punishable under the provisions of the Indian Penal Code. The petitioners submit that the respondent no.2, the Special Land Acquisition Officer, KIADB, has collected some documents before paying compensation amount to the said Paramesh, son of late Rudraiah and Siddalingappa, son of late

Doddayellappa. The respondent no.2 out of the total amount of compensation awarded being Rs.1,40,25,000=00 half of it being Rs.70,12,500=00 was paid to Siddalingappa and another half to Paramesh. Both the parties have received the compensation amount payable to the petitioners towards 13 guntas of compensation and liable to be refunded to the petitioners herein.

11. Further, the petitioners submit that on account of not investigating the ownership properly by the respondent no.2, the said Siddalingappa and Paramesh having suppressed true facts and obtained compensation. They have executed indemnity bonds stating that in case if the information furnished by them are false and not entitled to receive the entire compensation and in case it has to be paid to some other person, the entire or any part of compensation according to the circumstances will be returned. The parties have undertaken to refund the amount to the Government. In addition to it, loans and expenses have also to be paid etc. The true copy of the Indemnity Bond executed by the respondent no.3, Siddalingappa is produced as **ANNEXURE 'C'**. The true copy of the Indemnity Bond executed by the respondent no.4, Paramesh is produced as **ANNEXURE 'D'**. The true copy of the undertaking entered into by the respondent no.3 before the KIADB authority in the form of Agreement in the month of September, 2022 is produced as **ANNEXURE 'E'**. The true copy of the undertaking entered into by the respondent no.4 before the KIADB authority in the form of Agreement in the month of September, 2022 is produced as **ANNEXURE 'F'**.

12. In view of the above facts, the respondents no.1 and 2 and the respondents no.3 and 4 are liable to refund the entire amount payable towards compensation in respect of 13 guntas of land in survey number 36/2 of the said Obalapura is liable to be paid to these petitioners with interest from the date of receipt of the compensation being 05.09.2022 as per statement dated 05.09.2022 executed by the respondent no.2 and the Manager who have certified that "this is to certify that the name of the Khathedar, survey number, extent, amount and bank details as mentioned above is correct". The true copy of the Statement dated 05.09.2022 showing the bank details of compensation paid to the land loser through RTGS/NEFT is produced as **ANNEXURE 'G'**. The true copy of Receipt for having received the compensation amount dated 05.09.2022 by the respondent no.3 as per statement executed by the respondent no.2 is produced as **ANNEXURE 'H'**. The true copy of Receipt for having received the compensation amount dated 05.09.2022 by the respondent no.4 as per statement executed by the respondent no.2 is produced as **ANNEXURE 'J'**, [Annexure I is not marked].

13. The petitioners submit that during the later off of 2022, heard rumours in their village that the respondents' no.3 and 4 have wrongly manipulated and made the respondent no.2 authority to disburse the compensation on account of acquisition of the said land in Sy. No.36 of the said Obalapura village, including portion of compensation to which these petitioners were entitled to receive by suppressing true and relevant facts involved in the matter. As such, the petitioners after making enquiries in the office of the respondent no.2 authority and after applying for the certified copies

under the RTI Act, came to know that the respondents no.3 and 4 have collected wrongly a sum of Rs.35,75,000=00 which were entitled to be collected by the petitioners on account of acquisition of their portion of land in Sy. No.36 and thereafter, the petitioners issued a Legal Notice dated 12.12.2022 to the respondents no.1 to 4, demanding for payment of Rs.35,75,000=00 compensation due to them with interest from the date of receipt of the compensation being 05.09.2022 as per Statement dated 05.09.2022 executed by the respondent no.2 to respondents no.3 and 4 as detailed earlier and the respondents no.1 and 2 have been served with the legal notice. However, the said respondents' no.1 and 2 have failed to comply with the lawful demand made in the said legal notice and the respondents' no.3 and 4 have deliberately avoided to receive the said legal notice. Further, it is submitted that the petitioner herein had issued in furtherance of the legal notice dated 12.12.2022 a Memo/Notice dated 22.12.2022 to the respondents no.1 and 2, furnishing a copy of judgement and decree dated 29.09.2018 passed in the said O.S. No.49/2009 and the same as been received by the respondents no.1 and 2 and inspite of the same, the respondents no.1 and 2 have failed to make good of the said Rs.35,75,000=00 along with the interest to the petitioners. As such, the petitioners are constrained to approach this honourable court with the above writ petition. The true copy of the legal notice dated 12.12.2022 issued to the respondents' no.1 to 4 is produced herewith and marked as **ANNEXURE 'K'**. The true copy of the Memo/Notice dated 22.12.2022 issued to the respondents' no.1 and 2 is produced herewith and marked as **ANNEXURE 'L'**. The true copies of the returned original postal covers of respondents' no.3 and 4 are produced herewith and marked as **ANNEXURES 'M'**.

and 'M-1'. The true copies of the postal acknowledgment is produced herewith and marked as **ANNEXURE 'N'**. The true copies of the postal receipts are produced herewith and marked as **ANNEXURES 'P'**, [Annexure O is not marked].

14. In the said circumstances, the above writ petition is required to be allowed and the prayers made in the writ petition are required to be granted. Hence, this writ petition.

15. The petitioners have not filed any similar writ petition on the same cause for the same relief before this honourable court earlier.

16. There is no other alternative, efficacious and speedy remedy available to the petitioners as against the impugned inaction on the part of the official respondents except that of approaching this honourable court with the above writ petition.

17. The petitioners submit that the impugned inaction is not in accordance with law and suffers from various legal infirmities and is not tenable in law and the same requires interference by this honourable court to set aside the same. Hence, the above petition on the following among other;

GROUND

18. The lower authorities failed to consider the vested interest of other claimants with regard to land involved in the case while considering and awarding compensation for the land by failing to issue by issuing notices to all the interested persons in the said land, including the petitioners herein who have been considered and held to be owners of 13 guntas of land in survey number 36,

situated at Obalapura village, Thyamagondlu Hobli, Bengaluru Rural District in O.S. No.49/2009, while passing a judgement and decree dated 29.09.2018 therein, the certified copy of which is produced and marked as **ANNEXURE 'A'** and the same as resulted in passing the impugned Order/Award erroneously by the lower authorities.

19. The impugned inaction has caused serious miscarriage of justice and seriously jeopardising and affecting the valid rights of ownership over the said 13 guntas over which the petitioners were entitled to a compensation of Rs.35,75,000=00 towards their 13 guntas of land unjustly, as such, it is just and fit case for this honourable High Court to issue necessary direction to consider and dispose of the representations made by the petitioners.

20. The lower authorities erred in law in considering the names of the land owners as mentioned in Column No.3 of the Final Notification and have determined compensation amount for disbursement, without properly investigating and ascertaining the true owners of the land in question, though in the said Column No.3 of the Final Notification has standing in the names of dead persons and not updated by the revenue authorities concerned which has resulted in wrongly depriving the petitioners to canvas their just rights before the lower authorities to canvass and establish their rights over the land which has been acquired by the said erroneous entries in the said Column No.3 has enabled respondents no.3 and 4 claiming compensation which belonged to the petitioners herein.

21. As such, it is just and necessary that this honourable court be pleased to direct the respondents' no.1 and 2 authorities to initiate proceedings against the respondents no.3 and 4 to recover the

compensation of Rs.35,75,000=00 wrongly received by the respondents no.3 and 4 and disburse the same to the petitioners to meet the ends of justice. There is no justification for the official respondents to keep the request pending.

22. The impugned inaction is even otherwise opposed to law, equities involved in the case, highly perverse, arbitrary, capricious and opposed to natural justice.

23. The petitioners crave leave of this honourable court to urge other grounds available to them in law at the time of addressing arguments.

PRAYER

WHEREFORE, the petitioners in the above petition pray that this honourable court be pleased to grant the following reliefs ;

[a] To issue a writ of mandamus, directing the respondents no.1 and 2 to consider the claim of the petitioners as per the demands made in their legal notice dated 12.12.2022 produced and marked as Annexure 'K' to the writ petition.

[b] To issue a writ of mandamus, directing the respondents no.1 and 2 to consider the Memo/Notice dated 22.12.2022 produced and marked as Annexure 'L', filed by the petitioners by taking necessary steps against the respondents no.3 and 4 by calling upon them to deposit Rs.35,75,000=00 with interest from the date of disbursement of compensation amount of Rs.1,40,25,000=00 and pay the said Rs.35,75,000=00 to the petitioners herein together with all the interest payable to them under the Land Acquisition Act like Solasium, etc., in the interest of justice and equity.

[c] Costs, grant any other Writ, directions or orders of like nature as this honourable court may deem fit to grant in the circumstances involved in the case to meet the ends of justice.

WRIT PETITION SCHEDULE PROPERTY

Immovable property in Sy No.36, measuring 13 guntas, situated at Obalapura village, Thyamagondlu Hobli, Bengaluru Rural District and the same is bounded on the ;

East by : Rudraiah's Property,

West by : Papanna's Property,

North by : Kaluve,

South by : Siddalingappa's Property.

Bengaluru,

Dated: .09.2023

Advocate for Petitioners
[C. SHANKAR REDDY]

Address for Service:

Sriyuths:

SRI. C. SHANKAR REDDY,
B.A.L., LL.B.,
ADVOCATE,
NO.16, 6TH MAIN ROAD,
GANDHINAGAR,
BENGALURU-560009.

(21)

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

WRIT PETITION No.

/ 2023 [LA-RES]

BETWEEN:

Smt. Sarojamma
and others

Petitioners

AND:

The State of Karnataka
and others

Respondents

AFFIDAVIT VERIFYING THE WRIT PETITION

I, Sri. Shivu, son of late Sri. Shivarudraiah, aged about 32 years, residing at Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala Taluk, Bangalore District, now come over to Bengaluru city, do hereby solemnly affirm and state on oath as follows:

1. I am the 2nd petitioner in the above petition and I am competent to swear to this affidavit on behalf of myself and on behalf of 1st and 3rd petitioner also. I am familiar with the facts that I am swearing to herein.
2. I submit that the statements made by us at paragraphs no.1 to in the accompanying writ petition are true to the best of my knowledge, information and belief.
3. I submit that the Annexures filed by us at **Annexure 'A'** to ' are true/certified copies of the originals.

VERIFICATION

I, Sri. Shivu, the deponent herein, do hereby verify that the contents of this affidavit are true to the best of my knowledge, information and belief.

Dated at Bengaluru, this the day of September, 2023.

Identified by me

Shivu S

Deponent

Sworn to before me

Advocate

No. of Corrections:

220281
220286.

26/02/19

ANNEXURE - 'A'

IN THE COURT OF THE SENIOR CIVIL JUDGE
AT NELAMANGALA

Present:

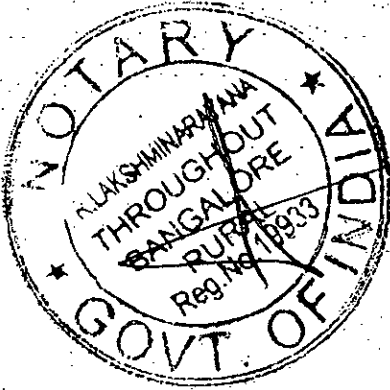
SRI SRINIVASA GOWDA.C,
B.A.L., LL.B.,
Senior Civil Judge
Nelamangala.

Dated this the 29th day of September 2018.

OS NO.49/2009

PLAINTIFFS:-

Shivarudraiah @ Rudrappa, aged
about 35 years, S/o. Late
Veerabhadraiah, residing at
Hadihosahalli Village,
Thyamagondlu Hobli, Bangalore
District. **Since dead by legal
representatives.**



1(a). Sarojamma, aged about 42
years, W/o. Late
Shivarudraiah,

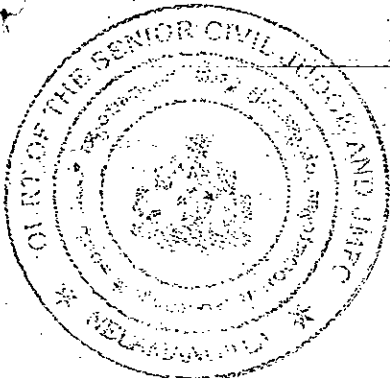
1(b). Sri Shiva, aged about 20 years,
S/o. Late Shivarudraiah,

1(c). Veerabhadra, aged about 18
years, S/o. Late Shivarudraiah,

All are Residing at Hadihosahalli
Village, Thyamagondlu Hobli,
Nelamangala Taluk, Bangalore
District.

(By Sri SCR, Advocate)

V/s.



DEFENDANT:-

Sri Siddagangaiah, major in age,
S/o. Chikkayellappa, residing at
Hadihosahalli Village,
Thyamagondlu Hobli, Bangalore
District.

(By Sri KCM, Advocate)

Date of Institution of the suit
Nature of the Suit

24.05.1999

Declaration and
Injunction

Date of commencement of
recording of Evidence
Date of Pronouncement of
Judgment
Duration

05.07.2004

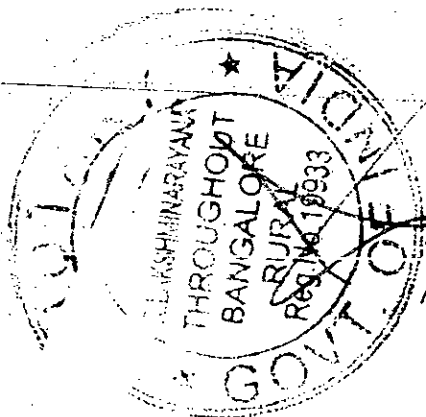
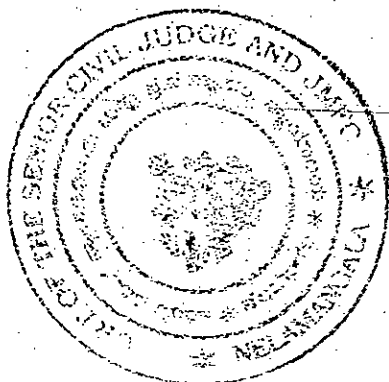
29.09.2018

Year/s Month/s Day/s
19 04 05

(SRINIVASA GOWDA.C)
Senior Civil Judge
Nelamangala.

JUDGMENT

The Plaintiff has filed the present suit against the Defendant seeking relief of declaration to declare that he is the absolute owner of the suit schedule properties and consequential relief of permanent injunction to restrain the Defendant from interfering with his peaceful possession and enjoyment of the suit schedule properties.



(24)

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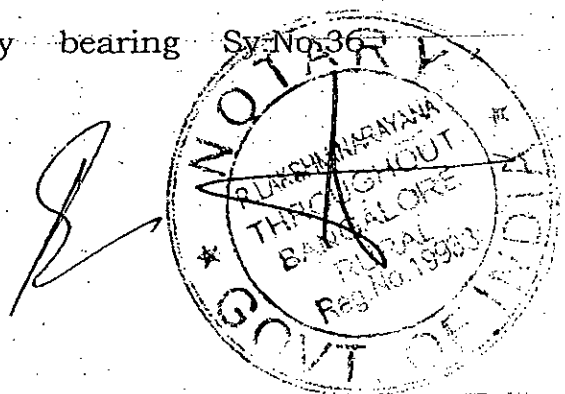
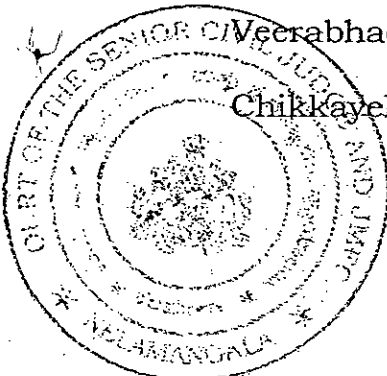
OS NO.49/2009

2. The brief facts of the case:

The Plaintiff submits that one Rudraiah was the propositus of their family. The said Rudraiah had five sons namely Veerabhadraiah, Chikkayellaiah, Yellaiah, Eraiah and Gangaiah. Rudraiah had immovable properties and the same were divided among his five sons. After the partition, Gangaiah died issueless. After the death of Gangaiah, the properties allotted to Gangaiah were again partitioned by his four brothers. Under the partition the suit schedule properties were allotted to the share of Veerabhadraiah.

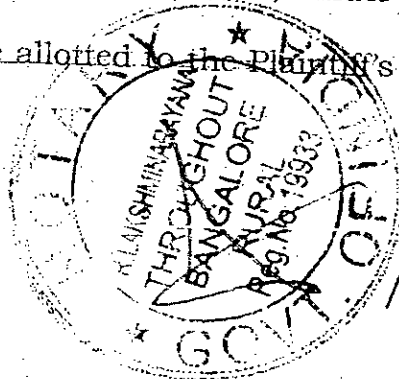
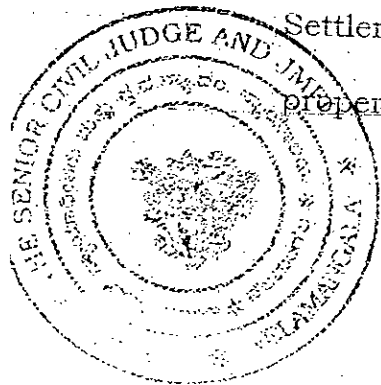
The Veerabhadraiah, Chikkayellaiah, Yellaiah and Eraiah were in possession of their respective properties. The Plaintiff is the only son of Veerabhadraiah. After the death of Veerabhadraiah, the Plaintiff has succeeded the estate and became the absolute owner and in possession and enjoyment of the suit schedule properties.

3. The Plaintiff further stated that Chikkayellaiah had three sons i.e., the Defendant, Rudraiah and Veerabhadraiah. Under the family partition, the Chikkayellaiah got the property bearing Sy.No.36



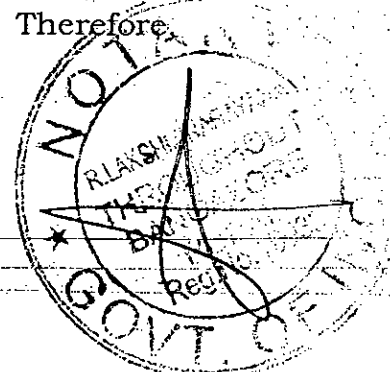
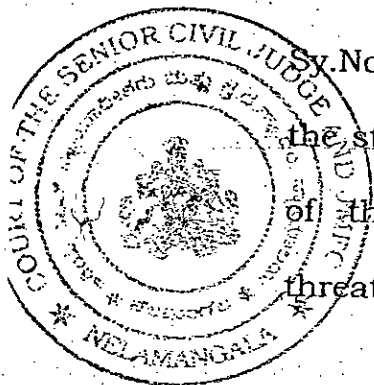
measuring 20 guntas, Sy.No.37/1 measuring 27 guntas, Sy.No.18/2B measuring 10 guntas, at Oblapura. Similarly, he also got properties in Sy.No.1/3 measuring 15 guntas, Sy.No.20/2 measuring 26 guntas, Sy.No.11/1 measuring 3 acres 20 guntas, Sy.No.13/6 measuring 20 guntas and in Sy.No.13/8 measuring 1 acre 20 guntas of Hadihosahalli Village. Apart from that Chikkayellaiah had also acquired 20 guntas in Sy.No.20/2. The Defendant and his brothers have been in possession and enjoyment of the properties allotted to the share of Chikkayellaiah. But, the Defendant family has no other properties at Hadihosahalli and Oblapura.

4. The Plaintiff has further stated that after the death of his father, Smt.Basamma who is the mother of the Plaintiff was looking after the properties allotted to the share of Veerabhadraiah. At that time Chikkayellaiah was pretending as a well-wisher to the Plaintiff's family. Taking advantage that the Plaintiff's mother was a widow, the Chikkayellaiah with a malafide intention got created a Settlement Deed dt:13.12.1962, under the said deed the properties were allotted to the Plaintiff's family, which were



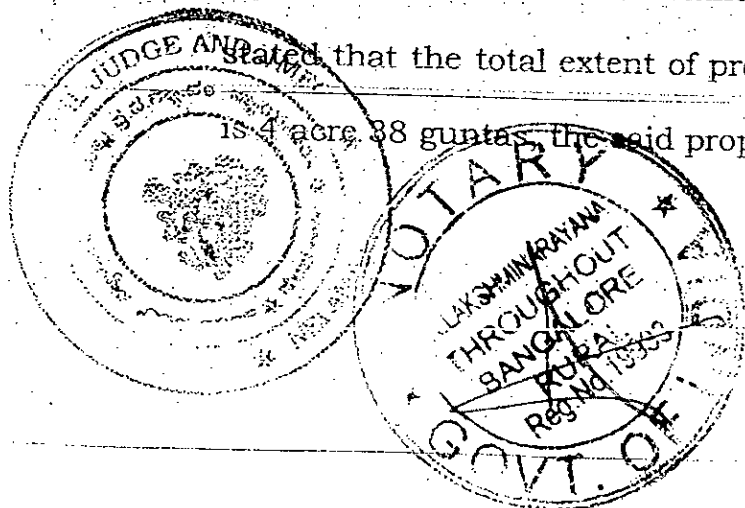
not in existence. The fraud played by the Chikkayellaiah came to know to the Plaintiff's mother and the Settlement Deed came to be cancelled on 25.12.1965. The Plaintiff and his mother were in joint possession and enjoyment of the suit schedule properties and they were paying tax to the said properties.

5. The Plaintiff has further stated that the Defendant has no manner of right, title or interest over the suit schedule properties. In spite of that the Plaintiff tried to interfere with the Plaintiff's property. At that time the Plaintiff and the Defendant got amicably settled and compromised the matter. Thereafter the Defendant with a malafide intention, he has initiated many legal proceedings against the Plaintiff with respect to the suit schedule properties. Some of the legal proceedings are also pending for consideration. Such being the case, the Defendant came near the properties of the Plaintiff i.e., in Sy.No.10/1, Sy.No.11/1 and Sy.No.13/8 and tried to cut and remove the standing trees. The Plaintiff has resisted the illegal act of the Defendant, at that time the Defendant has threatened the Plaintiff with dire consequences. Therefore



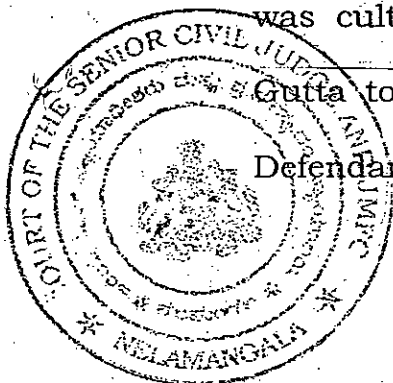
the Plaintiff has approached the Thymagondlu Police Station and gave the complaint against the Defendant. But the police have not initiated any legal proceedings. The Defendant is very powerful person in the locality having men and money. Therefore, the Plaintiff has approached to this court seeking an relief of declaration and permanent injunction. Accordingly, the Plaintiff has prayed to decree the suit with cost.

6. The Defendant has filed the written statement ~~contending that the suit filed by the Plaintiff is not~~ maintainable. Further, the Defendant has admitted that the five sons of Late Rudraiah got divided the family properties. He has also admitted that the properties bearing Sy.No.36 measuring 20 guntas, Sy.No.37/1 measuring 27 guntas of Oblapura Village, Sy.No.1/3 measuring 15 guntas, Sy.No.20/2 measuring 20 guntas, Sy.No.13/6 measuring 20 guntas and Sy.No.13/8 measuring 1 acre 20 guntas situated at Hadihosahalli and fallen to the share of his father. The Defendant further ~~stated that the total extent of property bearing Sy.No.11/1~~ is 4 acre 38 guntas the said property was fallen to share of

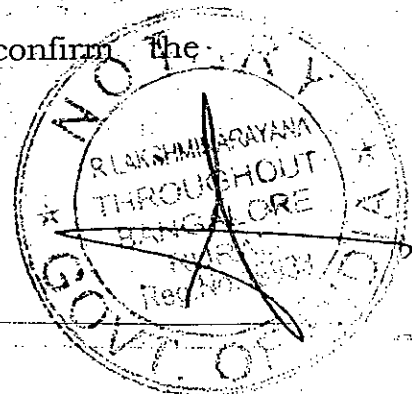


his father. The said property was divided among his brother Rudraiah and the Defendant, they have got 2 acre 19 guntas each in Sy.No.11/1. The Plaintiff has no manner of right, title or interest over the property bearing Sy.No.11/1 of Hadihosahalli Village.

7. The Defendant has denied that the property bearing Sy.No.10/1 measuring 2 acre 2 guntas was fallen to the share of Veerabhadraiah. Further, he has stated that the property bearing Sy.No.10/1 measuring 2 acre 2 guntas fallen to the share of the Defendant's father, the same was divided among the Defendant's brother and himself. Accordingly, they have been in possession and enjoyment of the property bearing Sy.No.10/1. Further, it is stated that the Plaintiff is not the owner of property bearing Sy.No.49 measuring 27 guntas. But, the same is included in the present suit. Originally, the property bearing Sy.No.49 measuring 2 acres land belonged to one Nanjunda Rao. Out of 3 acres, the father of the Defendant was cultivating 1 acre as a tenant and his was paying Guttu to the Nanjunda Rao. Therefore, the father of the Defendant has filed the from No.7 to confirm the



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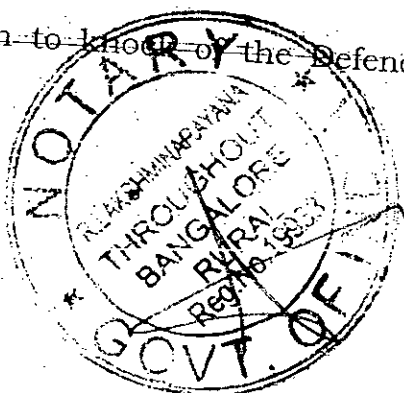
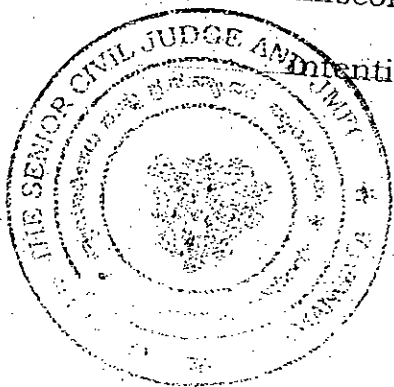
(29)

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OS NO.49/2009

occupancy right with respect to 1 acre, the same is pending for consideration. Similarly, the Defendant has also filed form No.7 to confirm the occupancy right with respect to the Sy.No.18 measuring 18 guntas. The Land Tribunal has reserved the matter for orders. Therefore, the Plaintiff has not manner of right, title or interest over the property bearing Sy.No.49 and 18.

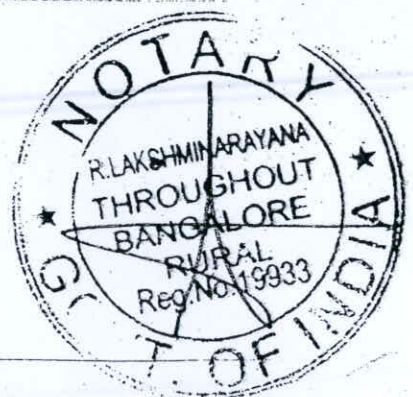
8. The Defendant further stated that the total measurement of property bearing Sy.No.13/6 is 1 acre 20 guntas, out of which 20 guntas was fallen to the share of the father of the Defendant, 20 guntas was fallen to the share of Yellaiah and remaining 20 guntas jointly allotted to the share of Eraiah and the Plaintiffs No.2 and 3. Subsequently, Eraiah has sold the said 20 guntas in favour of the father of the Defendant under the registered Sale Deed dt:07.05.1976. Therefore, the Plaintiff has no manner of right or interest over the properties allotted to the share of the father of the Defendant and properties purchased by the Defendant. In spite of that the Plaintiff with a misconceived notion, he has filed the present suit with an intention to know of the Defendant properties. Further,



the Defendant has denied that at no point of time he tried to interfere with the Plaintiff's possession as alleged in the plaint. The Plaintiff has suppressed the true material facts before the court. Moreover, the Plaintiff is not the absolute owner and in possession of the suit schedule properties. As such the suit filed by the Plaintiff is liable to be dismissed with costs.

9. On the basis of the contentions above the following issues framed:

1. Whether the plaintiff proves that he is the absolute owner in possession of suit schedule properties on the date of suit?
2. Whether the Plaintiff proves that Defendant has no right over the suit schedule properties and illegally tried to cut the trees in the suit schedule properties and interfering with the peaceful possession and enjoyment of the suit schedule property as alleged in the plaint?
3. Whether the defendant proves that suit is not properly valued and court fee paid is in sufficient?
4. Whether the Defendant proves that suit is bad for non joinder of parties as contending in para 16 of the W.S.?
5. Whether the plaintiff proves that he is entitled for the relief of declaration and



31
permanent injunction as prayed in the
plaint?

6. What order or decree?

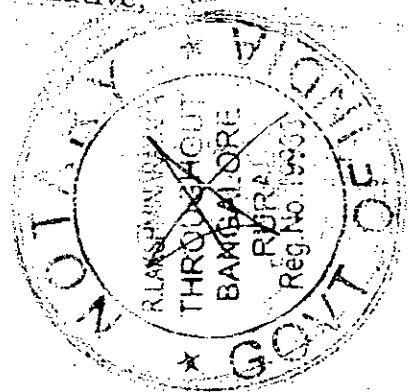
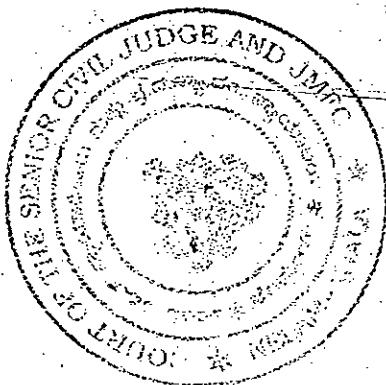
10. The Plaintiff got examined himself as PW1 and got marked at Ex.P1 to P17. During the pendency of the suit, the PW1 died. Therefore, PW1 was not cross examined by the Defendant. The Plaintiff No.1(a) got examined herself as PW2 and got marked at Ex.P1 to P30. The Plaintiff No.1(b) is examined as PW3, he was not tender for cross examination. One witness by name Siddalingappa examined as PW4, but on his affidavit it is noted as PW3.

The Defendant got examined himself as DW1 and got marked at Ex.D1 to D10.

11. Heard the arguments of learned counsel for the Plaintiff. Both the counsel have filed their written arguments.

12. THE answers to the above issues are here below:

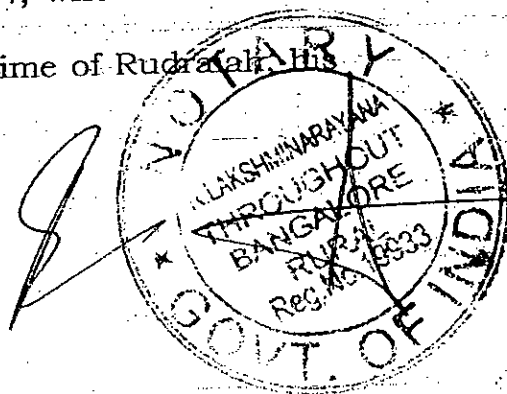
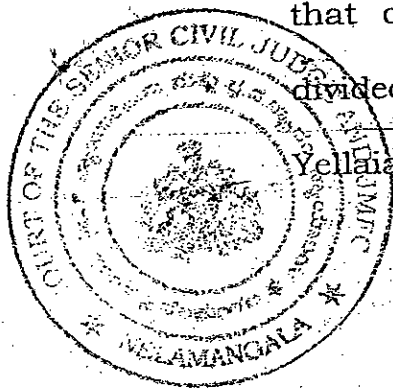
Issue No.1	:	Partly in Affirmative,
Issue No.2	:	In the Affirmative,
Issue No.3	:	Partly in Affirmative,
Issue No.4	:	In the Negative,
Issue No.5	:	Partly in Affirmative,



Issue No.6 : As per the final order
for the following;

REASONS

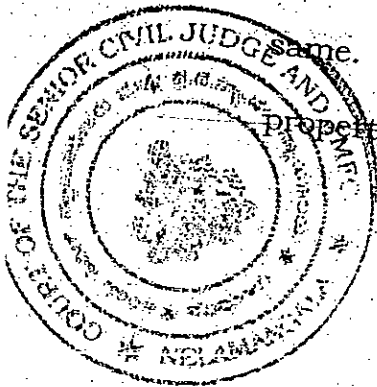
13. **ISSUE NO.1:-** The Plaintiff No.1(a) got examined herself as PW2. She has deposed that, one Rudraiah was the propositus of her husband's family. The said Rudraiah had five sons namely Veerabhadraiah, Chikkayellaiah, Yellaiah, Eraiah and Gangaiah. Rudraiah had immovable properties and the same were divided among his five sons. Under the said partition the properties were also allotted to the share of Gangaiah. The Gangaiah died issueless, therefore, his four brothers got divided the properties allotted to the share of Gangaiah. Veerabhadraiah, Chikkayellaiah, Yellaiah and Eraiah were in possession of their respective properties as per the partition took place in the family. In support of her oral evidence, the PW1 has produced the Partition Deed, the same is marked as Ex.P12. On careful perusal of the said document, it reveals that on 18.05.1935, Rudraiah and his sons have got divided the family properties. The PW4, who is the son of Yellaiah, deposed that during the lifetime of Rudraiah, his



(33)

sons and himself have got divided the family properties. In the cross examination of DW1 has also admitted that the sons of Rudraiah have got partitioned the family properties as per Ex.P12. On appreciation of evidence of PW2, PW4, admission of DW1 and Ex.P12 clearly goes to show that the Rudraiah and his sons have got divided the family properties in the year 1935.

14. The PW2 has deposed that the property bearing Sy.No.10/1 measuring 2 acre 2 guntas and property bearing Sy.No.11/1 measuring 1 acre 10 guntas and other properties were fallen to the share of her father-in-law under the partition. From the date of partition, her father-in-law was in possession and enjoyment of the said properties. After the death of her father-in-law, her husband succeeded to his estate and he was in possession and enjoyment of the said properties. Her husband has also died leaving behind the Plaintiffs No.1(b), 1(c) and herself as his legal representatives. Therefore, they have inherited the said properties and in possession of the same. On the other hand, the DW1 has stated that the property bearing Sy.No.10/1 measuring 2 acres 2 guntas

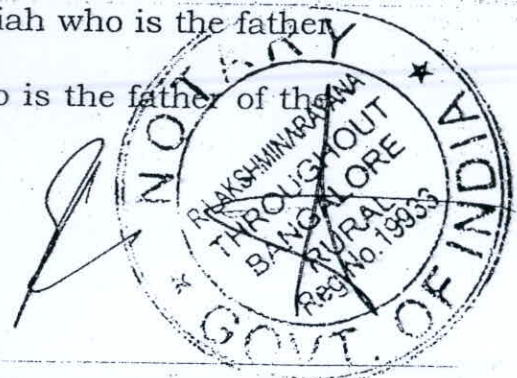
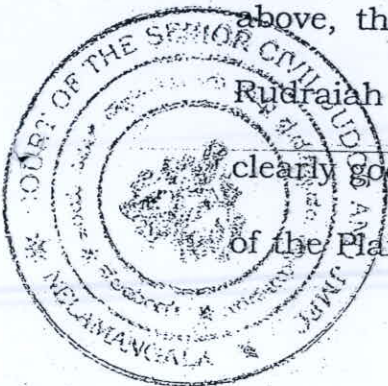


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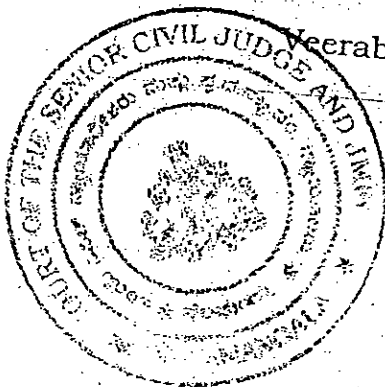
and property bearing Sy.No.11/1 measuring 4 acres 38 guntas were fallen to the share of his father. Thereafter they have divided the said properties, under the said partition his brother and himself got 2 acres 19 guntas each in Sy.No.11/1 and 1 acre 1 gunta each in Sy.No.10/1 of Hadihosahalli Village. The property bearing Sy.No.10/1 and Sy.No.11/1 were not fallen to the share of Veerabhadraiah. Therefore, the Plaintiff i.e., Shivarudraiah has not inherited the said properties. Shivarudraiah has no manner of right, title or interest over the property bearing Sy.No.10/1 and Sy.No.11/1 of Hadihosahalli Village.

15. On appreciation of evidence of PW2 and DW1 clearly goes to show that there is a dispute regarding to whose share the properties bearing Sy.No.10/1 and 11/1 were fallen. In order to prove the fact that the Veerabhadraiah has also got share in the property bearing Sy.No.10/1 and Sy.No.11/1, the PW2 has produced the Ex.P12. As stated above, the Ex.P12 is the Partition Deed entered between Rudraiah and his sons. On careful perusal of the Ex.P12, it clearly goes to show that Veerabhadraiah who is the father of the Plaintiff and Chikkayellaiah who is the father of the



(35)

Defendant have got equal share in the property of KenchakatteHola, Nanjundaiahana Patty and also in the property bearing Sy.No.10. It is pertinent to note here that in the Partition Deed, the survey numbers of the properties are not mentioned. But, one property survey number is mentioned as 10. There is no dispute that as per Ex.P12 Rudraiah and his sons were partitioned the family properties. In the cross examination of DW1 has also admitted that in Ex.P12 the survey numbers are not mentioned. Further in the cross examination the DW1 has admitted that the Nanjundaiahana Hola referred to in Ex.P12 is Sy.No.49, Kenchakatte Hola referred to in Ex.P12 is Sy.No.11/1 which measures 4 acres 39 guntas. Similarly, Sy.No.10 referred to in Ex.P12 is now Sy.No.10/1. The admission made by the DW1 shows that Kenchakatte Hola is the property bearing Sy.No.11/1, the property bearing Sy.No.10 is now Sy.No.10/1 and the Nanjundaiahana Hola is Sy.No.49. As stated above, on appreciation of the contents of Ex.P12, it clearly goes to show that in Kenchakatte Hola and in Sy.No.10 the Veerabhadraiah and Chikkayellaiah have got equal share



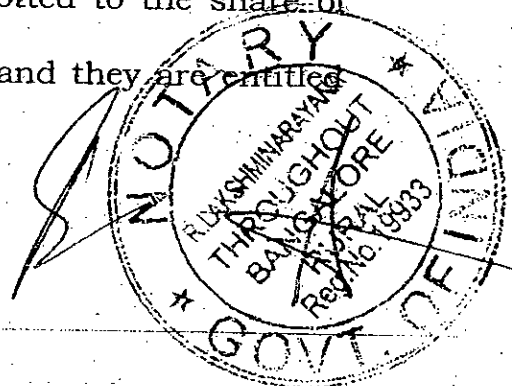
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and the other sons of Rudraiah have no share in the said properties. In the cross examination at Para No.16, the DW1 has admitted that Kenchakatte Hola referred to in Ex.P12 is Sy.No.11/1 which measures 4 acres 39 guntas. It is true that the said property is divided equally between the father of the Plaintiff and his father. The Sy.No.10 referred to in Ex.P12 is now Sy.No.10/1. He did not know that the said survey number is equally divided between the father of the Plaintiff and his father. Further, the PW4 in

his chief examination he stated that the property bearing Sy.No.10/1 and Sy.No.11/1 total measurement is 7 acres, the same were divided equally among Veerabhadraiah and Chikkayellaiah. On appreciation of the contents of Ex.P12, the admission made by the DW1 and evidence of PW4 clearly goes to show that the Veerabhadraiah and Chikkayellaiah are entitled for equal share in the property bearing Sy.No.10/1 and Sy.No.11/1.

16. In view of the above discussion, the Plaintiff has discharged the burden that the properties bearing Sy.No.10/1 and Sy.No.11/1 were allotted to the share of Veerabhadraiah and Chikkayellaiah, and they are entitled



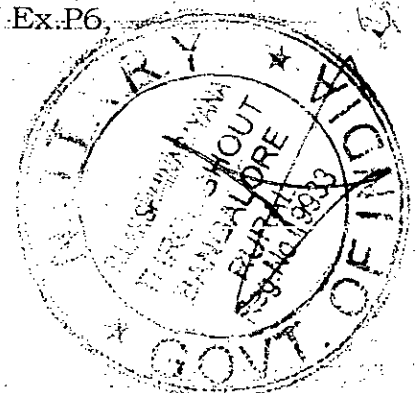
(37)

for the equal share in the said properties. Therefore, the onus shifts on the Defendant to prove the fact that the property bearing Sy.No.10/1 measuring 2 acres 2 guntas and Sy.No.11/1 measuring 4 acres 38 guntas exclusively fallen to the share of Chikkayellaiah. In that regard, the Defendants has not produced any material evidence. Nothing has been elicited during the cross examination of PW2 and PW4. Moreover, in the cross examination the DW1 himself has admitted that the property bearing Sy.No.11/1 measuring 4 acres 38 guntas and it is divided equally among Veerabhadraiah and Chikkayellaiah. In such circumstances, it cannot be believable that properties bearing Sy.No.10/1 and Sy.No.11/1 were exclusively fallen to the share of Chikkayellaiah. Thereafter the Defendant and his brother got divided the said properties.

17. The PW2 has deposed that the property bearing Sy.No.13/8 measuring 25 guntas situated at Hadihosahalli Village fallen to the share of Veerabhadraiah. After the death of Veerabhadraiah, her husband inherited the aforesaid property. In that regard, she has produced RTC, the same is marked as Ex.P6. On careful perusal of Ex.P6,

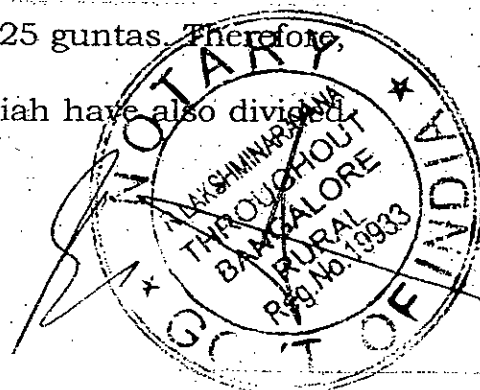
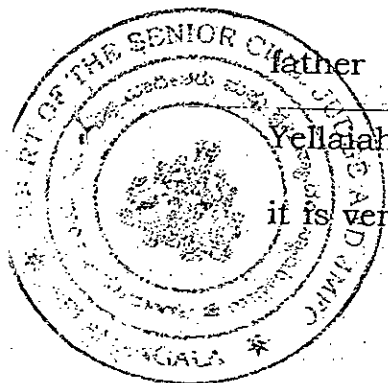


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it reveals that the khatha of the property bearing Sy.No.13/8 measuring 3 acres 12 guntas is jointly standing in the name of grand sons of Rudraiah. It is pertinent to note here that though there was a partition in the year 1935, but, the khatha of the family properties were continued jointly. Therefore, it is very clear that the property bearing Sy.No.13/8 belongs to the family of Rudraiah. In the cross examination at Para No.17, the DW1 has clear that it is true to suggest that on account of some dispute in Sy.No.13/8 a suit in OS.No.238/1959 is filed before Doddaballapura Court. It is true to suggest that the said suit is decreed and the father of the Plaintiff was allotted 25 guntas and his father got 1 acre 8 guntas in the said survey. It is true that by virtue of said decree Yellaiah got 34 guntas and Eraiah got 25 guntas. As discussed above, the Ex.P6 reveals that the total extent of the property bearing Sy.No.13/8 is 3 acre 12 guntas. The DW1 in the cross examination clearly stated that the Plaintiff's father got 25 guntas, his father got 1 acre 8 guntas,

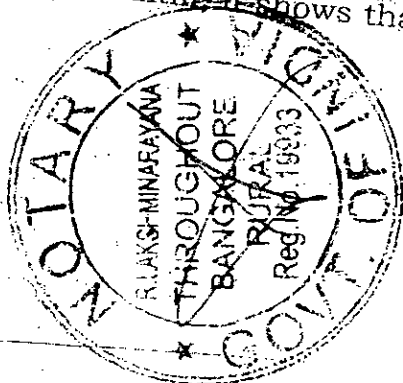
Yellaiah got 34 guntas and Eraiah got 25 guntas. Therefore, it is very clear that the sons of Rudraiah have also divided



(39)

the property bearing Sy.No.13/8 and under the said partition the Veerabhadraiah got 25 guntas, after his death the Plaintiff has succeeded to the said property.

18. The PW2 has deposed that his father-in-law has got share in the property bearing Sy.No.13/6 measuring 20 guntas. After his death, the Plaintiff has become the absolute owner of the said property. Per contra, the DW1 has admitted that the property bearing Sy.No.13/6 is the family property. Further, he has stated that the Sy.No.13/6 totally measures 1 acre 20 guntas. Out of which 20 guntas was fallen to the share of his father, 20 guntas fallen to the share of Yellaiah and remaining 20 guntas jointly allotted to the share of Eraiah and the Plaintiffs No.2 and 3. Subsequently, the Eraiah sold the said 20 guntas in favour of the Defendant under the registered Sale Deed dt:07.05.1976. In that regard, the DW1 has relied upon the Ex.P34. On careful reading of the Ex.P34, it clearly goes to show that on 06.05.1976, Eraiah sold the property bearing Sy.No.13/6 measuring 20 guntas in favour of the Defendant. It is pertinent to note here that the Ex.P34 produced by the Plaintiff, it shows that the Eraiah has sold



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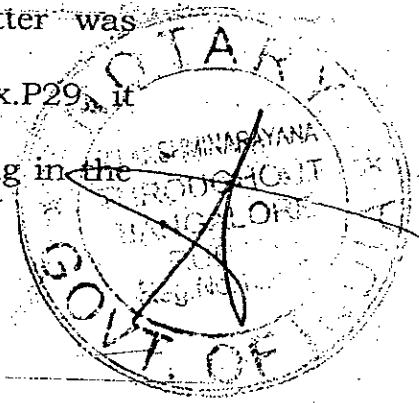
(40)

the aforesaid 20 guntas in favour of the Defendant. The Plaintiff have also not disputed that in property bearing Sy.No.13/6 measuring 20 guntas was allotted to the share of Chikkayellaiah and Yellaiah. Further, Nothing has been elicited in the cross examination of DW1. Therefore, it is very clear that the Plaintiff has no property in Sy.No.13/6.

19. The PW2 has deposed that the property bearing Sy.No.49 measuring 20 guntas situated at Hadihosahalli

Village was allotted to the share of Veerabhadraiah. In support of her oral evidence she has relied upon Ex.P29. On careful perusal of Ex.P29, it shows that one Nanjundaiah was the absolute owner, and Rudraiah, Kidiyappa and Siddagangaiah are in possession of the said property. In that regard, the DW1 has deposed that the property bearing Sy.No.49 measuring 3 acre belongs to one Nanjunda Rao. Out of 3 acres, his father was cultivating 1 acre as a tenant and he was paying gutta to the Nanjunda Rao. His father has filed a Form No.7 for confirming the

occupancy rights in his favour. The said matter was pending for consideration. On appreciation of Ex.P29, it shows that the property bearing Sy.No.49 standing in the

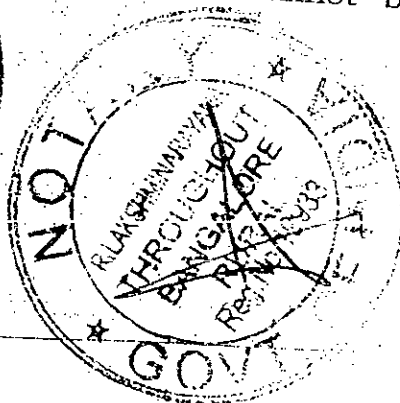
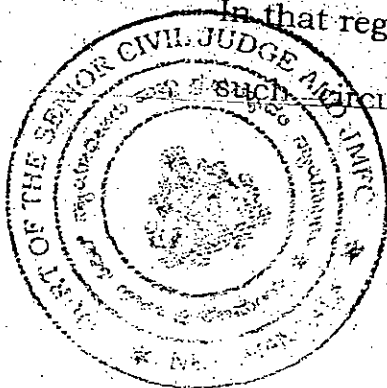


(41)

name of Nanjundaiah. The DW1 has also stated that the property bearing Sy.No.49 does not belong to their family. Therefore, his father was cultivating the said property as a tenant and he was paying gutta to the Nanjunda Rao. It is pertinent to note here that the evidence on record reveals that the family of Rudraiah was cultivating the property bearing Sy.No.49 as a tenants. Therefore, at the time of the partition as per Ex.P12, the property bearing Sy.No.49 shown as Nanjundiaha Patty and in the said property the Veerabhadraiah and Chikkayellaiah have got equal share.

Though, the said property was allotted to the share of Veerabhadraiah and Chikkayellaiah, the property bearing Sy.No.49 was not belong to Rudraiah's family as on the date of the partition. Moreover, the Plaintiff has also not produced any document to show that as on the date of the filing of the suit the property bearing Sy.No.49 belong to their family. The DW1 in his chief examination itself he has stated that his father was applied for occupancy rights with respect to the property bearing Sy.No.49 measuring 1 acre.

In that regard, he has also not produced any document. In such circumstances, it cannot be believable that the

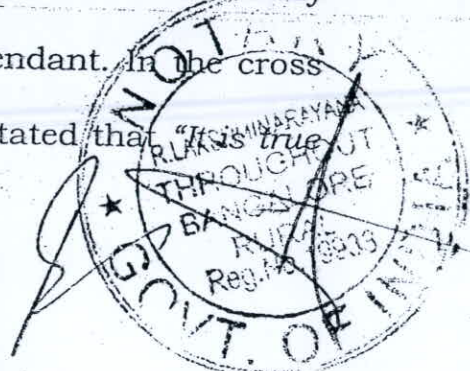
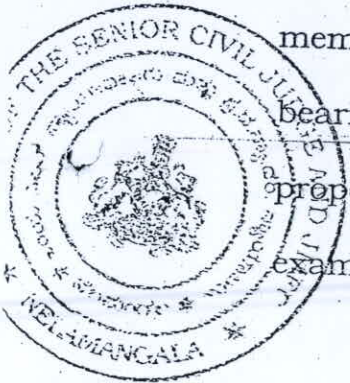


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(42)

Sy.No.49 belong to Rudraiah's family and the Plaintiff is the owner of property bearing Sy.No.49 measuring 27 guntas.

20. According to the Plaintiff, the property bearing Sy.No.1/3 measuring 14 guntas, property bearing Sy.No.20/2 measuring 27 guntas and property bearing Sy.No.36 measuring 13 guntas fallen to the share of Veerabhadraiah. After the death of Veerabhadraiah, the Plaintiff has inherited the aforesaid properties. In that regard, the PW2 has relied upon Ex.P2, Ex.P9, Ex.P22, Ex.P27 and Ex.P28. On appreciation of the entries in the RTC clearly goes to show that the khatha of the said properties jointly standing in the name of grand sons of Rudraiah and the property bearing Sy.No.36 standing in the name of Chikkayellaiah. As discussed above, though there was a partition in the year 1935, the khatha of the joint family properties continued in the name of the family members. Therefore, it is very clear that the properties bearing Sy.No.1/3, Sy.No.20/2 and Sy.No.36 are the family properties of the Plaintiff and the Defendant. In the cross examination, the DW1 at para No.19 stated that



(H3)

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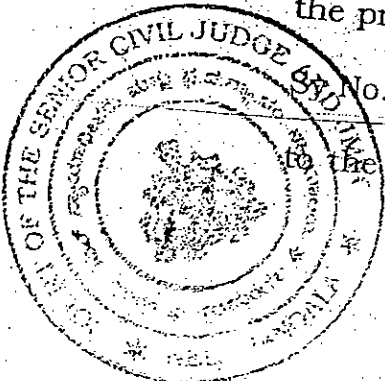
OS NO.49/2009

that, I have dispute only in respect of Sy.Nos.10/1 and 11/1. I have no objection to decree the suit as prayed for in respect of other properties except Sy.Nos.10/1 and 11/1. I have no objection to mutate the khatha or revenue records in the name of the Plaintiff in respect of the other properties".

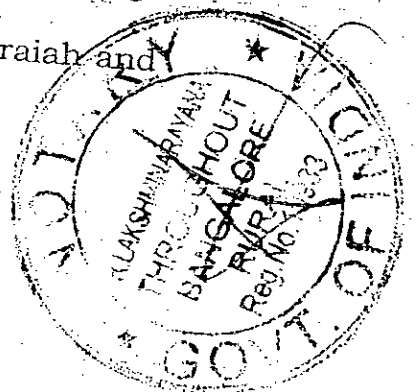
On appreciation of this part of the cross examination of DW1, it clearly goes show that except property bearing Sy.No.10/1 and Sy.No.11/1, he has no objection with respect to the other properties. Moreover, the RTC extracts produced by the Plaintiff clearly goes to show that the

property bearing Sy.No.1/3 measuring 1 acre 13 guntas, property bearing Sy.No.20/2 measuring 2 acres 25 guntas and Sy.No.36 measuring 1 acre 11 guntas belongs to Rudraiah's family and they have got divided the same. Under the said partition the Veerabhadraiah has got 14 guntas in Sy.No.1/3, 27 guntas in Sy.No.20/2 and 13 guntas in Sy.No.36.

21. In view of the above discussion, it is very clear that the properties bearing Sy.No.10/1, Sy.No.11/1, Sy.No.1/3, Sy.No.20/2, Sy.No.13/6, Sy.No.13/8 and Sy.No.36 belongs to the family of Rudraiah. During 1935, the Rudraiah and

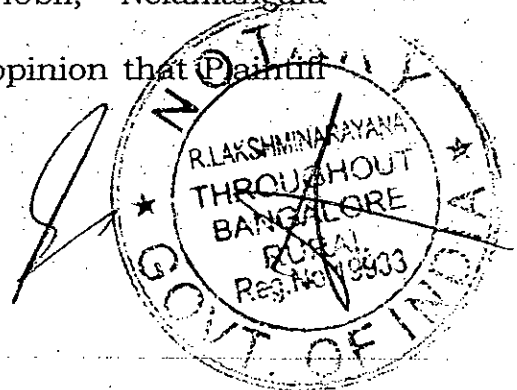
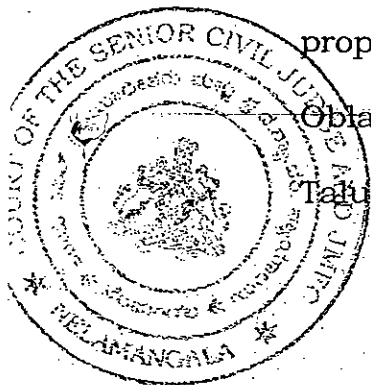


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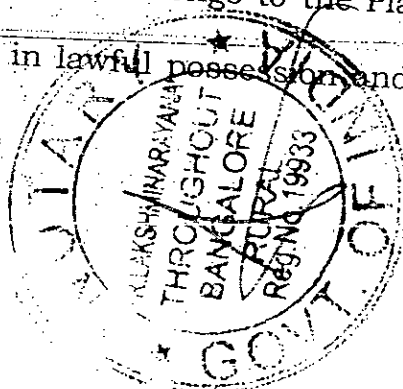
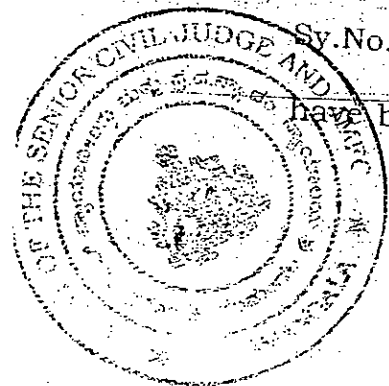
his sons got divided the aforesaid properties under Ex.P12. As per the Ex.P12, the Veerabhadraiah has got the suit schedule properties. But, the property bearing Sy.No.49 does not belong to Rudraiah's family. From the date of partition the Veerabhadraiah was in possession and enjoyment of the properties allotted to his share. After the death of Veerabhadraiah his son Shivarudraiah i.e., Plaintiff herein succeeded to the estate of Veerabhadraiah. During the pendency of the suit, Shivarudraiah died leaving behind the Plaintiffs No.1(a) to 1(c). As such the Plaintiffs No.1(a) to 1(c) inherited the properties of Shivarudraiah. Therefore, the Plaintiffs No.1(a) to 1(c) are the absolute owners and in possession of the properties bearing Sy.No.1/3 measuring 14 guntas, Sy.No.10/1 measuring 2 acres and 2 guntas, Sy.No.11/1 measuring 1 acre 10 guntas, Sy.No.13/8 measuring 25 guntas and Sy.No.20/2 measuring 27 guntas situated at Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala Taluk and property bearing Sy.No.36 measuring 13 guntas situated at Oblapura Village, Thyamagondlu Hobli, Nelamangala Taluk. Therefore, this court is of the opinion that Plaintiff



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has proved that they are the absolute owner of the aforesaid properties except Sy.No.13/6 measuring 20 guntas and Sy.No.49 measuring 27 guntas. Accordingly, I hold issue No.1 in **Partly in Affirmative**.

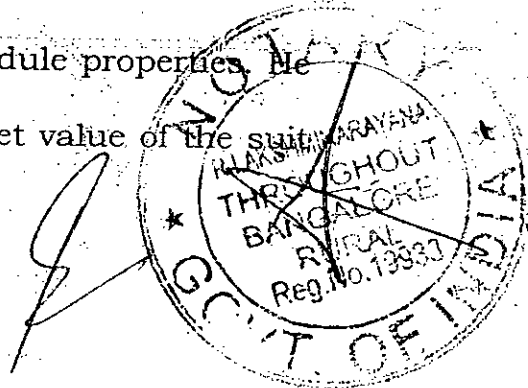
22. **ISSUE NO.2:-** The PW2 deposed that they have grown the eucalyptus trees in Sy.No.10/1, Sy.No.11/1 and Sy.No.13/8. The Defendant has no manner of right, title or interest over the said properties. In spite of that he tried to trespass over the aforesaid properties with an intention to cut the standing trees. At that time her husband has approached to the jurisdictional Police Station to lodged a complaint. The Police have not taken any action against the Defendant. On 22.05.1999 about 09:00 AM, when her husband was working in the said land, the Defendant came with his supporters and threatened her husband with dire consequences. Therefore, they have filed the present suit against the Defendant. It is pertinent note here that, in view of the discussion made on issue No.1, it is clear that except the properties bearing Sy.No.49 and Sy.No.13/6 were belongs to the Plaintiff's family and they have been in lawful possession and enjoyment of the said



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properties. In spite of that the Defendant has been denying the title and lawful possession of the Plaintiff. It is well settled law that the denial of a legitimate right of the parties itself amounts to interference. Moreover, in the cross examination he has stated that he has dispute over the property bearing Sy.No.10/1 and Sy.No.11/1, where the Plaintiff has grown the eucalyptus trees. Moreover the Plaintiff has not been claiming right in the entire Sy.No.10/1 and Sy.No.11/1. On the other hand, even though the Defendant has no exclusive right over the said properties, he is claiming entire property bearing Sy.No.10/1 and Sy.No.11/1 belongs to the family. These acts of the Defendant itself amounts to interference. Therefore, this court is of the opinion that the Plaintiff has proved that the Defendant have been tried to interfere with his peaceful possession and enjoyment of his properties. Accordingly, I hold issue No.2 in **Affirmative**.

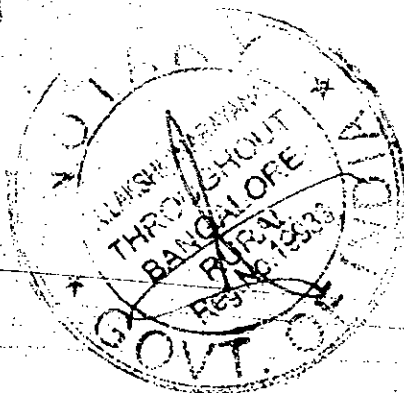
23. **ISSUE NO.3:-** The Defendant has contended that the Plaintiff has filed the present suit for declaration and injunction with respect to the suit schedule properties. He has not paid the court fee on the market value of the suit.



(47)

schedule properties. The court fee paid by the Plaintiff is insufficient. On careful perusal of the suit schedule properties, it reveals that all the properties are the agricultural property and they have assessed for payment of revenue. Therefore, the Plaintiff has calculated market value as per Sec.7 of Karnataka Court Fee and Suits Valuation Act. The Plaintiff has paid the court fee as per the Sec.24(b) of Karnataka Court Fee and Suits Valuation Act. But, the Plaintiff has not paid the court fee for the relief of permanent injunction. Under these circumstances, it is just and necessary to direct the Plaintiff to pay the court fee of Rs.25/- on the plaint. As such the court fee paid by the Plaintiff is not sufficient. On the said sole ground, the suit cannot be dismissed. However, the court can direct the Plaintiff to pay the deficit court fee. Accordingly, I hold issue No.3 **Partly in Affirmative**.

24. **ISSUE NO.4:-** The Defendant has taken the contention that the Veerabhadraiah had 3 wives, through his first wife he has got a daughter by name Veeramma, through his second wife he has got a daughter by name Nagamma and through his third wife he has got children

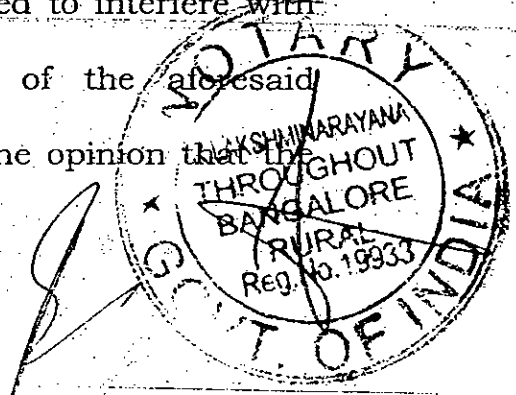
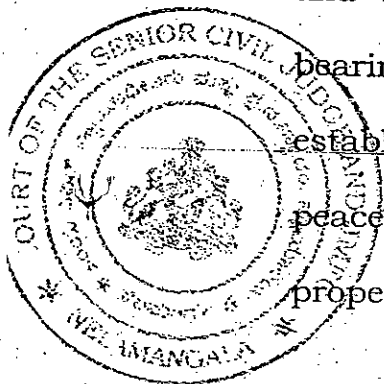


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by name Channveeramma and the Plaintiff. The Plaintiff has not made the other daughters of Rudraiah as parties to the suit. As such the suit is bad for non-joinder of necessary parties. It is pertinent to note here that since the Defendant has tried to interfere with the peaceful possession and enjoyment of the suit schedule properties and he has denied the title of the Plaintiff with respect to the said properties. Therefore, the Plaintiff has filed the ~~suit against the Defendant herein. This is the suit for~~ declaration and injunction, as such the daughters of Veerabhadraiah are not necessary parties. Therefore, the contention taken by the Defendant that the suit is not maintainable for non-joinder of necessary parties cannot be acceptable. Accordingly, I hold issue No.4 in **Negative**.

25. **ISSUE NO.5:-** In view of the above discussion, the Plaintiff has established that they are the absolute owner and in possession of the properties, except properties bearing Sy.No.13/6 and Sy.No.49. Further, they have also

~~established that the Defendant has tried to interfere with~~ peaceful possession and enjoyment of the aforesaid properties. Therefore, this court is of the opinion that the



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OS NO.49/2009

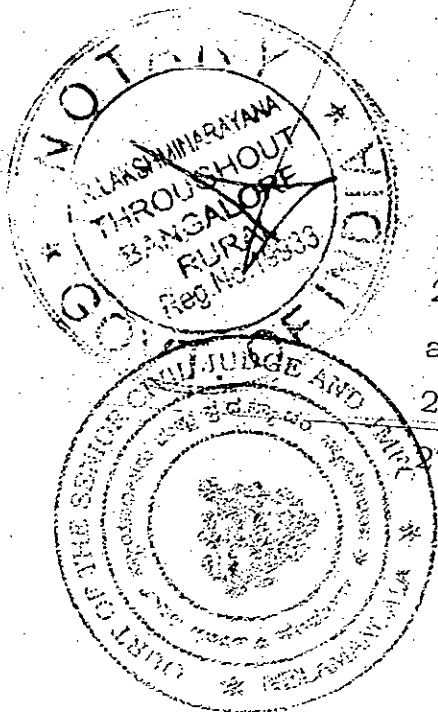
Plaintiff is entitled for relief of declaration with respect to the properties bearing Sy.No.1/3 measuring 14 guntas, Sy.No.10/1 measuring 2 acres 2 guntas, Sy.No.11/1 measuring 1 acre 10 guntas, Sy.No.13/8 measuring 25 guntas and Sy.No.20/2 measuring 27 guntas situated at Hadihosahalli Village and Sy.No.36 measuring 13 guntas situated at Oblapura Village. The Plaintiff is also entitled for the relief of permanent injunction restraining the Defendant from interfering with aforesaid properties. Accordingly, I hold issue No.5 in **Partly in Affirmative**.

26. **ISSUE NO.6:-** For the foregoing reasons, I proceed to pass the following;

ORDER-

The suit filed by the plaintiff is hereby partly decreed with costs.

The Plaintiff is hereby declared as owner with respect to the properties bearing Sy.No.1/3 measuring 14 guntas, Sy.No.10/1 measuring 2 acres 2 guntas, Sy.No.11/1 measuring 1 acre 10 guntas, Sy.No.13/8 measuring 25 guntas and Sy.No.20/2 measuring 27 guntas situated at Hadihosahalli



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Village and Sy.No.36 measuring 13 guntas situated at Oblapura Village.

The Defendant is hereby restrained by way of permanent injunction from interfering with his peaceful possession and enjoyment of the aforesaid properties by the Plaintiff i.e., Plaintiffs No.1 (a) to 1(c).

The Plaintiff is hereby directed to pay court fee of Rs.25/-.

Draw decree accordingly.

(Dictated to Stenographer, transcribed and computerized by her, corrected, signed and then pronounced by me in the Open Court on this the 29th day of September 2018).

(SRINIVASA GOWDA.C)
Senior Civil Judge
Nelamangala.

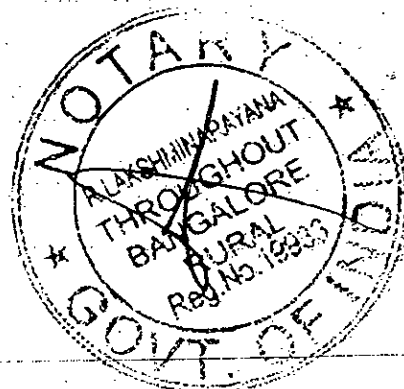
ANNEXURE

No. of Witness examined on behalf of the Plaintiff/s

- | | | |
|---------|---|--------------------|
| 1. PW-1 | - | Sri Shivarudraiah |
| 2. PW-2 | - | Smt.Sarojamma |
| 3. PW-3 | - | Sri Veerabhadraiah |
| 4. PW-4 | - | Sri Siddalingappa |

No. of Exhibits marked on behalf of the Plaintiff/s

- | | |
|-------------------|-------------------|
| 1. Ex.P1 | Affidavit of PW1 |
| 2. Ex.P2 to P9 | RTCs |
| 3. Ex.P10 and P11 | Tax paid receipts |
| 4. Ex.P12 | Partition Deed |



(51)

5. Ex.P12(a) and P12(b)
6. Ex.P13

Signature of the witnesses

7. Ex.P14

Certified copy of the Order given by the Assistant Commissioner in RA.No.129/1992-93

8. Ex.P15

Certified copy of the Order Sheet in OS.No.84/1992

9. Ex.P16

Certified copy of the Order in OS.No.225/1998

10. Ex.P17

Records of Rights

11. Ex.P18 and P19

Index of Land

12. Ex.P20 and P21

Certified copy of the Judgment and Decree in OS.No.225/1998

13. Ex.P22 to P30

Certified copy of the Judgment and Decree in RA.No.22/2009

14. Ex.P31 and P32

RTCs

15. Ex.P33

Certified copy of the Judgment and Decree in RA.No.22/2009

16. Ex.P34

Certified copy of the Sale Deed dt:29.04.1956

17. Ex.P35

Certified copy of the Sale Deed dt:06.05.1976

18. Ex.P35(a)

Panchayathi Parikath

19. Ex.P36

Signature of the witness

Panchayathi Parikath

No. of Witness examined on behalf of the Defendant/s
DW-1

Sri Siddagangaiah

No. of Exhibits marked on behalf of the Defendant/s

1. Ex.D1 to D10

RTCs

TRUE COPY

EXAMINER

Hbn

1/10/18

(SRINIVASA GOWDA.C)
Senior Civil Judge
Nelamangala.

29/9

23/10/18

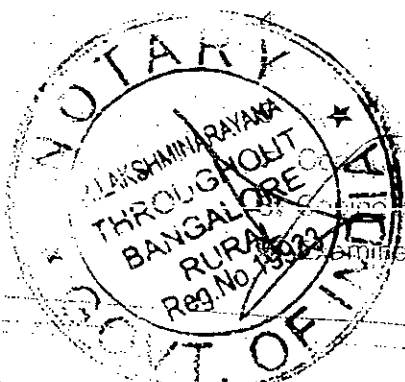
9/10/18

9/10/18

delivered

ATTESTED TRUE COPY

R. LAKSHMINARAYANA
ADVOCATE & NOTARY
No. 222, (Old No. 4833)
Paramanna Layout,
Nelamangala Town,
Bangalore (R) Dist-562 125



Adopt
(52)

DECREE

IN THE COURT OF THE SENIOR CIVIL JUDGE & JMFC.,
AT NELAMANGALA.

OS No.49/2009

Plaintiffs:-

1. Shivarudraiah @ Rudrappa, aged about 35 years, S/o. Late Veerabhadraiah, residing at Hadihosahalli Village, Thyamagondlu Hobli, Bangalore District. Since dead by legal representatives.

1(a). Sarojamma, aged about 42 years, W/o. Late Shivarudraiah,

1(b). Sri Shiva, aged about 20 years, S/o. Late Shivarudraiah,

1(c). Veerabhadra, aged about 18 years, S/o. Late Shivarudraiah,

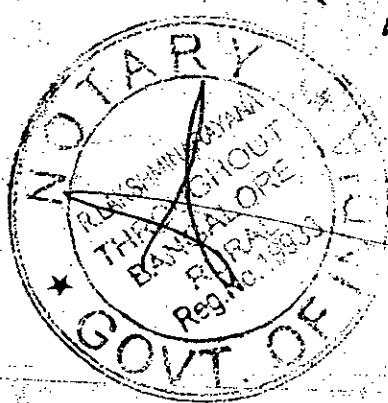
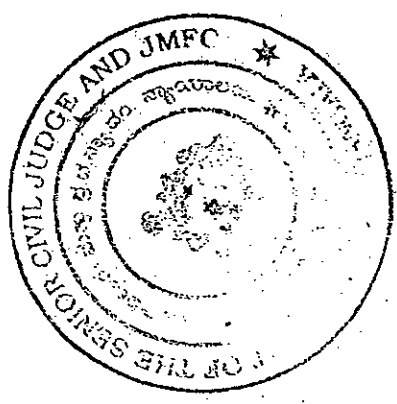
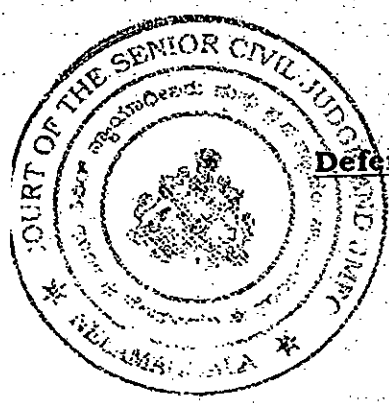
All are Residing at Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala Taluk, Bangalore District.

V/s.

Defendants:-

Sri Siddagangaiah, major in age, S/o. Chikkayellappa, residing at Hadihosahalli Village, Thyamagondlu Hobli, Bangalore District.

Senior Civil Judge & JMFC.,
Nelamangala.
9/10/12



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- 2 -

OS.NO.49/2009

Suit filed on 08.09.2009 by the Plaintiff against the Defendants for Judgment and Decree, to declare that the plaintiff is the owner of the suit schedule properties, consequently grant permanent injunction restraining the defendant or anyone through him from interfering with the plaintiffs peaceful possession and enjoyment of the suit schedule properties in any manner including that of trespassing, damaging the trees thereon on preventing the plaintiff from carrying out agricultural operations thereon, direct the defendant to pay the costs of these proceedings for costs and such other reliefs.

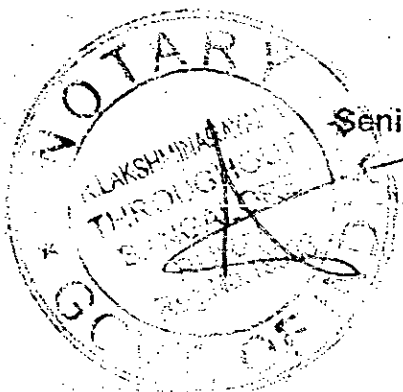
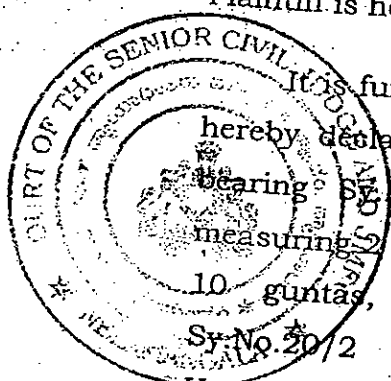
This Suit coming for final disposal before **Sri Srinivasa Gowda.C., B.A.L., LL.B.,** Senior Civil Judge & JMFC., Nelamangala in the presence of Sri SCR, Advocate for the Plaintiffs and Sri KCM, Advocate for the Defendant.

It is ordered and decreed that, the suit filed by the Plaintiff is hereby partly decreed with costs.

It is further ordered and decreed that, the Plaintiff is hereby declared as owner with respect to the properties bearing Sy.No.1/3 measuring 14 guntas, Sy.No.10/1 measuring 2 acres 2 guntas, Sy.No.11/1 measuring 1 acre 10 guntas, Sy.No.13/8 measuring 25 guntas and Sy.No.20/2 measuring 27 guntas situated at Hadihosahalli Village and Sy.No.36 measuring 13 guntas situated at Oblapura Village.

Senior Civil Judge & JMFC.,
Nelamangala.

9/10/12



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It is further ordered and decreed that, The Defendant is hereby restrained by way of permanent injunction from interfering with his peaceful possession and enjoyment of the aforesaid properties by the Plaintiff i.e., Plaintiffs No.1 (a) to 1(c).

Given under my hand and the seal of this Court on this the 29th day of September 2018.

(Srinivasa Gowda, C)
Senior Civil Judge & JMFC,
Nelamangala.

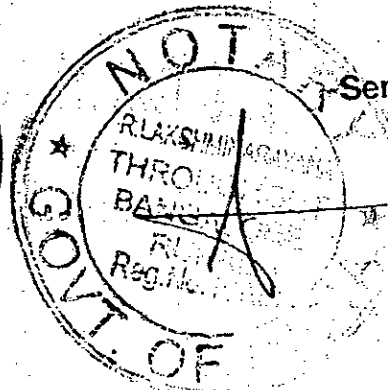
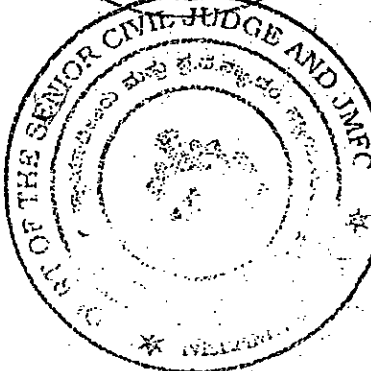
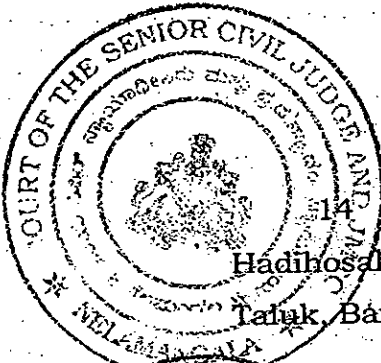
MEMORANDUM OF COSTS

By Plaintiffs	Rs.Ps.	By Defendants	Rs.Ps.
Court fee paid on Plaint	25-00	Court Fee paid on Plaint	-
Process Fee paid	18-00	Process Fee paid	-
CF on IA	-	CF on IA	-
Advocate's Fee (FC filed)	-	Advocate's Fee	-
Total	43-00	Total	-

(Srinivasa Gowda, C)
Senior Civil Judge & JMFC,
Nelamangala.

SCHEDULE

14 guntas of land in Sy.No.1/3 situated at
Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala
Taluk, Bangalore District, bounded on the:



Senior Civil Judge & JMFC,
Nelamangala.

55

- 4 -

OS.NO.49/2009

East by : Yellappa's Land,
West by : Adviappa's Property,
North by : Nanjundappa's Property,
South by : Gramathana.

2 acres 2 guntas of land in Sy.No.10/1 situated at
Hadihoshalli Village, Thyamagondlu Hobli, Nelamangala
Taluk, Bangalore District, bounded on the:-

East by : Chikkayellappa's Property,
West by : Oni,
North by : Road,
South by : Katte.

Including Eucalyptus Trees there

1 acre 10 guntas in Sy.No.11/1 situated at
Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala
Taluk, Bangalore District, bounded on the:-

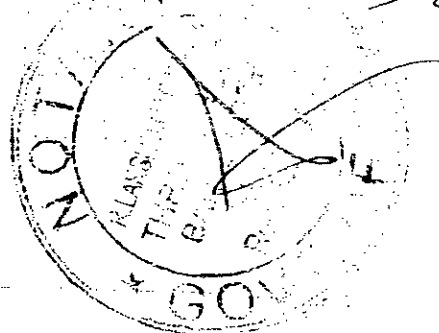
East by : Shivarudraiah's Property,
West by : Veeranna's Property,
North by : Kari Rudrappa's Property,
South by : Murugendra's Property.

Including standing Eucalyptus Trees thereon

20 guntas of land in Sy.No.13/6 situated at
Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala
Taluk, Bangalore District, bounded on the:

Senior Civil Judge & JMFC.,
Nelamangala.

9/10/08



East by : Siddagangaiah's Property,
 West by : Basellappa's Land,
 North by : Adivappa's Property,
 South by : Adivappa's Property.

Including 4 Eucalyptus Trees thereon

25 guntas of land in Sy.No.13/8 situated at
 Hadihoshalli Village, Thyamagondlu Hobli, Nelamangala
 Taluk, Bangalore District, bounded on the:-

East by : Kere Angala,
 West by : Siddarachappa's Land,
 North by : C.Veeranna's Property,
 South by : Gangappa S/o. Yellaiah's
 Property.

Including Eucalyptus Trees thereon.

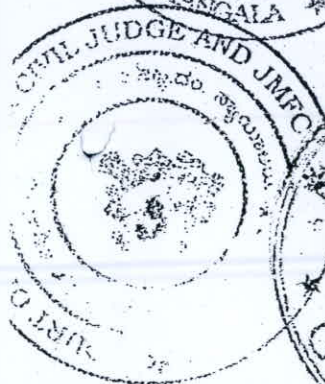
27 guntas of land in Sy.No.20/2 situated at
 Hadihosahalli Village, Thyamagondlu Hobli, Nelamangala
 Taluk, Bangalore District, bounded on the :-

East by : Siddagangaiah's Property,
 West by : Rudraiah's Property,
 North by : Kidiyappa's Property,
 South by : Chikka Kere.

13 guntas of land in Sy.No.36 situated at Obalapura
 Village, Thyamagondlu Hobli, Nelamangala Taluk,
 Bangalore District, bounded on the:

Senior Civil Judge & JMFC.,
 Nelamangala.

9/10/18



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- 6 -

OS.NO.49/2009

East by : Rudraiah's Property,
West by : Papanna's Property,
North by : Kaluve,
South by : Siddalingappa's Property.

20 guntas of land in Sy.No.49 situated at
Nadihosahalli Village, Thymagondlu Hobli, Nelamangala
Taluk, Bangalore District, which is bounded on the:-

East by : Land in Sy.No.49 belonging to
Chikkayellaiah,
West by : Nanjundappa's Land,
North by : Land of Basettappa,
South by : Doddaballapur Road.

(Srinivasa Gowda C)
Senior Civil Judge & JMEC,
Nelamangala.
9/10/18

TRUE COPY

EXAMINER



TESTED TRUE COPY

R. LAKSHMINARAYANA
ADVOCATE & NOTARY
No. 222, Old No. 4823)
Paramanna Layout,
Nelamangala Town,
Bangalore (U) Dist-562 123

11/10/18

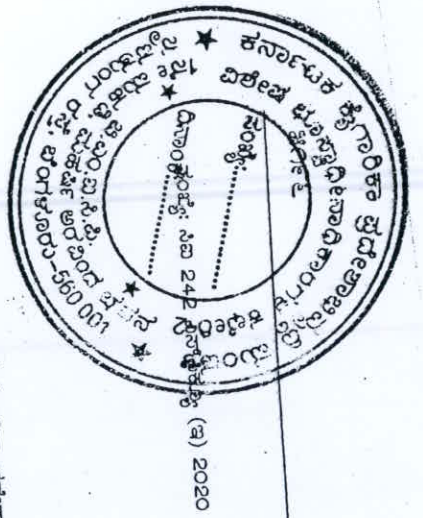
4/3/19

20/2/19

18/2/19

20/2/19

10/10/2018



ANNEXURE - B

ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಗುರುವಾರ, ೧೨. ಆಗಸ್ಟ್ ೨೦೨೧

(58)

ಭಾಗ ೩

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಸಚಿವಾಲಯ,

ವಿಕಾಸ ಸೌಧ,

ಬೆಂಗಳೂರು, ದಿನಾಂಕ 11.08.2021

ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದರ್ಶನಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966 ರ ಕುರಿತು 28(4)ರನ್ವಯ ಅಧಿಸೂಚನೆ

1966ರ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದರ್ಶನಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆಯು (1966ರ ಕರ್ನಾಟಕ ಕಾಯ್ದೆ ಸಂಖ್ಯೆ: 18) ವಿಧಿ 28(1)ರ ಪ್ರಕಾರ ದತ್ತವಾದ ಅಧಿಕಾರದ ಮೇರೆಗೆ ದಿನಾಂಕ: 10.12.2020ರ ಅಧಿಸೂಚನೆ, ಕರ್ನಾಟಕ ವಿಶೇಷ ಗಾಜು ಮತ್ತು ಬಾಗ-3 ರ ವಿಶೇಷ ಪತ್ರಿಕೆ ಮತ್ತು ಸಂಖ್ಯೆ 6879 ರಿಂದ 7004 ರಷ್ಟು ಪ್ರಕಟವಾಗಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ: ಸಿಎ 242 ಎಸ್.ಎಸ್.ಎಲ್. (ಇ) 2020 ದಿನಾಂಕ 08.12.2020ರ ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಪ್ರದೇಶದ ಪ್ರಕಾರ ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ನಡರಿ ಅಧಿಸೂಚನೆಯಲ್ಲಿ ನಮೂದಿಸಲ್ಪಟ್ಟಿರುವ ಜಮೀನ್ದಾರಿಗಳನ್ನು Multi Modal Logistics Park (MMLP) ಯೋಜನೆಯಡಿ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲು ಇಚ್ಛಿಸುತ್ತಿದೆ.

ಮೇಲ್ಕಂಡ ಅಧಿಸೂಚನೆಯು ಪೆಡ್ಲೋನ್ಗಳನ್ನು ನಮೂದಿಸಲ್ಪಟ್ಟಿರುವ ಜಮೀನ್ದಾರಿಗಳನ್ನು ಪ್ರಕಟವಾಗಿರುವ ಉದ್ದೇಶಕ್ಕಾಗಿ ಭೂಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳಬೇಕಾಗಿರುವುದು ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ಮನವಿಬಿಟ್ಟಿದೆ. ಈ ಬಗ್ಗೆ ಮೇಲ್ಕಂಡ ಕಾಯ್ದೆ ವಿಧಿ 28(3)ರ ಪ್ರಕಾರ ಆದೇಶ ಹೊರಡಿಸಲಾಗಿದೆ.

ಆದುದರಿಂದ 1966 ರ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದರ್ಶನಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ ವಿಧಿ 28(4)ರ (1966ರ ಕರ್ನಾಟಕ ಕಾಯ್ದೆ ಸಂಖ್ಯೆ: 18)ರ ಮೇರೆಗೆ ದತ್ತವಾದ ಅಧಿಕಾರದ ಮೇರೆಗೆ ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಕೆಳಗೆ ನಮೂದಿಸಿರುವ ಜಮೀನ್ದಾರಿಗಳನ್ನು ಅಧಿಸೂಚನೆಯಲ್ಲಿ ತಿಳಿಸಿರುವ ಉದ್ದೇಶಕ್ಕಾಗಿ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲಾಗುವುದು ಈ ಮೂಲಕ ಘೋಷಿಸಲಾಗಿದೆ.

ಕ್ರ. ಸಂ	ಖಾತೆದಾರರ ಹೆಸರು	ಅನುಬಂಧದಾರರ ಹೆಸರು	ಸರ್ವೆ ಸಂ	ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲ್ಪಟ್ಟ ವಿಸ್ತೀರ್ಣ (ಎ-ಗು)			ತರಹೆ	ಆಕಾರ	ಪಕ್ಕಬಂದಿ			
				ವಿಸ್ತೀರ್ಣ	ಖಂಡ	ಬಾಕಿ			ಪೂರ್ವ	ಪಶ್ಚಿಮ	ಉತ್ತರ	ದಕ್ಷಿಣ
1	2	3	4	5	6	7	8	9	10	11	12	13
ಗ್ರಾಮ: ಓಮಕಾಮರ												
ಹೋಬಳಿ: ತಾಳುಮನೆಗೂಡು												
ತಾಲ್ಲೂಕು: ನೆಲಮಂಗಲ												
ಜಿಲ್ಲೆ: ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ												
1.	ಆರ್. ನುಬ್ರಹ್ಮಣ್ಯಪ್ಪರ ಜನ್ಮ ದೇಶ	ಆರ್. ನುಬ್ರಹ್ಮಣ್ಯಪ್ಪರ ಜನ್ಮ ದೇಶ	4ರ ಪೈಕಿ	4-23	0-05	4-04	ಖುಟ್ಟಿ ತಿರಿ	9-54, 0-67	22	4ರ ಪೈಕಿ	6, 19, 7	ರಸ್ತೆ
	ರಂಗಣ್ಣಿ	ರಂಗಣ್ಣಿ										
	ಆರ್. ನರಸಿಂಹಮೂರ್ತಿ ಜನ್ಮ ದೇಶ	ಆರ್. ನರಸಿಂಹಮೂರ್ತಿ ಜನ್ಮ ದೇಶ										
	ರಂಗಣ್ಣಿ	ರಂಗಣ್ಣಿ										

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ಪೊ

542

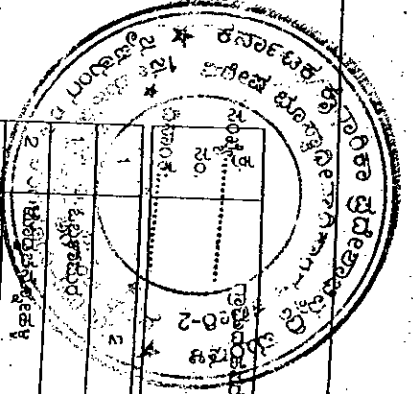
ಕ್ರ.ಸಂ.	ನಾಮ	3	4	5	6	7	8	9	10	11	12	13
78.	ಮಧುರಾ ಕೋಂಟೇನರ್ ಟರ್ಮಿನಲ್ ಬಸ್ ನಿಲ್ದಾಣ	ಮಧುರಾ ಕೋಂಟೇನರ್ ಟರ್ಮಿನಲ್ ಬಸ್ ನಿಲ್ದಾಣ	33/1	0-26	0-01	0-25	ತರಿ	1-27	34	31	33, 32	33/2, 3
79.	ಬಿ.ಜಿ.ರಾಜಗೋಪಾಲ್ ಬಸ್ ನಿಲ್ದಾಣ	ಬಿ.ಜಿ.ರಾಜಗೋಪಾಲ್ ಬಸ್ ನಿಲ್ದಾಣ	33/2	0-21	-	0-21	ತರಿ	1-06	34	33/3	33/1	23
80.	ಬಿ.ಜಿ.ರಾಜಗೋಪಾಲ್ ಬಸ್ ನಿಲ್ದಾಣ	ಬಿ.ಜಿ.ರಾಜಗೋಪಾಲ್ ಬಸ್ ನಿಲ್ದಾಣ	33/3	0-20	-	0-20	ತರಿ	1-01	33/2	27	33/1	23
81.	ಕೆ.ವಿ.ಜಯಕುಮಾರ್ ಬಸ್ ನಿಲ್ದಾಣ	ಕೆ.ವಿ.ಜಯಕುಮಾರ್ ಬಸ್ ನಿಲ್ದಾಣ	34/1	1-27	-	1-27	ತರಿ	3-24	36	34/2	34/34	ರಸ್ತೆ
82.	ಎಸ್.ಮಧುರಾಜು ಬಸ್ ನಿಲ್ದಾಣ	ಎಸ್.ಮಧುರಾಜು ಬಸ್ ನಿಲ್ದಾಣ	34/2	0-17	-	0-17	ತರಿ	0-82	34/1	33	34/3	ರಸ್ತೆ
83.	ರಂಗಣ್ಣ ಬಸ್ ನಿಲ್ದಾಣ	ರಂಗಣ್ಣ ಬಸ್ ನಿಲ್ದಾಣ	34/3	1-02	0-02	1-00	ತರಿ	1-31	34/4	33	35	34/1
84.	ಮಾಧವ್ವ ಬಸ್ ನಿಲ್ದಾಣ	ಮಾಧವ್ವ ಬಸ್ ನಿಲ್ದಾಣ	34/4	0-02	-	0-02	ತರಿ	0-05	36	34/3	35	2
85.	ಮಾಧವ್ವ ಬಸ್ ನಿಲ್ದಾಣ	ಮಾಧವ್ವ ಬಸ್ ನಿಲ್ದಾಣ	35/1	1-32.08	0-04	1-28.03	ತರಿ	3-65	41	224	224	35/2
86.	ರಾಮಕೃಷ್ಣಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	ರಾಮಕೃಷ್ಣಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	35/2	1-28.08	-	1-28.08	ತರಿ	3-65	41	224	35/1	34, 36, 33
87.	ವೀರಣ್ಣ ಬಸ್ ನಿಲ್ದಾಣ	ವೀರಣ್ಣ ಬಸ್ ನಿಲ್ದಾಣ	36/1	1-20	0-05	1-15	ತರಿ	2-50	38	41	37	ಓಣಿ
88.	ದೊಡ್ಡ ಎಲ್ಲಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	ದೊಡ್ಡ ಎಲ್ಲಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	36/2	1-12	0-01	1-11	ತರಿ	2-00	41, 36/1	34	35	ಓಣಿ
89.	ರುದ್ರಯ್ಯ ಸಿದ್ದಗಂಗಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	ರುದ್ರಯ್ಯ ಸಿದ್ದಗಂಗಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	37/1	0-28	0-01	0-27	ತರಿ	1-30	41, ತರಿ	37/2	41	38
90.	ಗಂಗಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	ಗಂಗಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	37/2	0-22	0-01	0-21	ತರಿ	1-01	37/1	37/4	41	38
91.	ರುದ್ರಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	ರುದ್ರಯ್ಯ ಬಸ್ ನಿಲ್ದಾಣ	37/3	0-30	0-02	0-28	ತರಿ	1-34	37/4	41	41	38, 36

ಭಾಗ ೩

ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಗುರುವಾರ, ೧೨, ಆಗಸ್ಟ್ ೨೦೨೦

೫೭೫೯

--ಪೋಷಾಧಿ :-



ಕ್ರಮ ಸಂಖ್ಯೆ ನಂ.	ಪ್ರಾಥಮಿಕ ಶಿಕ್ಷಣ ನಂ.	ವಿಸ್ತೀರ್ಣ (ಎ-ಗು)		
		ಜಮೀನ್	ಖರೀದಿ	ಬಾಕಿ
1	1	3	4	5
2	2	582-34	167-11	415-23
3	3	38-39	10-13	28-26
4	4	54-09	0-27 3/4	53-21 3/4
5	5	53-34 1/2	0-39	52-35 1/2
6	6	98-38	59-00	39-38
7	7	11-17	0-21	10-36
8	8	2-05 3/4	-	2-05 3/4
9	9	842-17 1/4	238-31 1/4	603-26

೨೦೨೦

ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದ ಆಧಾರದ ಮೇಲೆ
ಮತ್ತು ಅವರ ಹೆಸರಿನಲ್ಲಿ

(ಎನ್. ಕುಮಾರ್)

ನರ್ಕೇರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ (ಕೈ.ಅ).

ಬಾಣಾಶ್ರಮ ಮತ್ತು ಕೈಕಾರಿ ಇಲಾಖೆ.

PR-512



सत्यमेव जयते

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

INDIA NON JUDICIAL

(61)

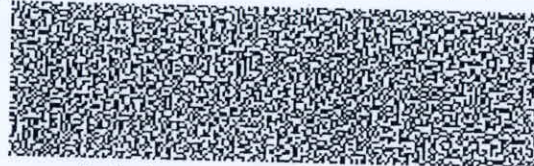
ANNEXURE - 'C'

Government of Karnataka

e-Stamp

Certificate No.	: IN-KA18254876604428U
Certificate Issued Date	: 01-Sep-2022 04:35 PM
Account Reference	: NONACC (FI)/ kaksfcl08/ BANGALORE6/ KA-RJ
Unique Doc. Reference	: SUBIN-KAKAKSFCL0850363538146250U
Purchased by	: SIDDALINGAPPA
Description of Document	: Article 12 Bond
Description	: AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: SIDDALINGAPPA
Second Party	: KIADB BANGALORE
Stamp Duty Paid By	: SIDDALINGAPPA
Stamp Duty Amount(Rs.)	: 100 (One Hundred only)

AUTHORISED SIGNATORY
UNIVERSAL CREDIT SOUHAARDA SAHAKARI (P)



-:: ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರ ::-

Please write or type below this line

ಸನ್ 2022 ನೇ ಸೆಪ್ಟೆಂಬರ್ ಮಾಹೆ ನೇ ದಿನಾಂಕದಂದು (-09-2022) ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು, ತ್ಯಾಮಗೊಂಡು ಹೋಬಳಿ, ಓಬಳಾಪುರ ಗ್ರಾಮ ಶ್ರೀ ಸಿದ್ದಲಿಂಗಪ್ಪ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲಯ್ಯ @ ಯಲ್ಲಯ್ಯ ಓಬಳಾಪುರ ಗ್ರಾಮ, ತ್ಯಾಮಗೊಂಡು ಹೋಬಳಿ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ ವಾಸಿಯಾದ ಆದ ನಾನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಯಿಂದ ಅಧಿಕಾರ ಪಡೆದ ಅಧಿಕಾರಿಗಳ ಸಮಕ್ಷಮ ಬರೆದುಕೊಟ್ಟ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ:-

.....2/-



ನಿರ್ದಲಂಗಳು

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.sholestamp.com' or using e-Stamp Mobile App of Stock Holding
Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate
3. In case of any discrepancy please inform the Competent Authority

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ಹಿಂಬದಿಯ ಷೆಡ್ಯೂಲ್‌ನಲ್ಲಿ ವಿವರಿಸಿರುವ ನನ್ನ ಸ್ಥಿರ ಆಸ್ತಿಯನ್ನು ಕರ್ನಾಟಕ ರಾಜ್ಯ ಸರ್ಕಾರವು ಕೈಗಾರಿಕಾ ಯೋಜನೆಗಾಗಿ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966ರ ವಿಧಿ 28(4)ರಡಿ ಅಂತಿಮ ಅಧಿಸೂಚನೆ ದಿನಾಂಕ 11-08-2021 ರಂದು ಹೊರಡಿಸಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ : ಸಿಐ 242 ಎಸ್‌ಪಿಕ್ಯೂ(ಇ) 2020 ರನ್ವಯ ಪ್ರಕಾರ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿದ್ದು, ಈ ಸ್ವತ್ತಿಗೆ ಸಂದಾಯವಾಗಬೇಕಾದ ಪರಿಹಾರಕ್ಕೆ ನಾನು ಹಕ್ಕುದಾರನಾಗಿರುತ್ತೇನೆ. ಈ ಸ್ವತ್ತಿನ ಮೇಲೆ ನಾನು ಸಂಪೂರ್ಣ ಸ್ವಾಮ್ಯ ಹೊಂದಿದ್ದು ಹಾಗೂ ಇದರಲ್ಲಿ ನನ್ನನ್ನು ಹೊರತುಪಡಿಸಿ ಬೇರೆ ಯಾರಿಗೂ ಯಾವುದೇ ರೀತಿಯ ಹಕ್ಕಿರುವುದಿಲ್ಲ. ಮಂಡಳಿಯು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ನನ್ನ : ನಮ್ಮ ಜಮೀನಿಗೆ ಪರಿಹಾರಧನವನ್ನು ಮಂಡಳಿಯು ಎಕರೆ ಒಂದಕ್ಕೆ 1.10 ಕೋಟಿ ರೂ.ಗಳಿಗೆ ನಿಗದಿಪಡಿಸಿದ್ದು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ನನಗೆ : ನಮಗೆ ನೋಟೀಸ್ ನೀಡಿ ಪರಿಹಾರ ಪಡೆಯಲು ತಿಳಿಸಿರುತ್ತಾರೆ. ಇದರಂತೆ ಮಂಡಳಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಓಟಲಾಪುರ ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ.36/2 ರಲ್ಲಿ 1-11 ಎ/ಗು ಪೈಕಿ ಜಮೀನಿಗೆ ಸಂದಾಯವಾಗ ಬೇಕಾದ ಭೂಪರಿಹಾರ ರೂ.70,12,500/- (ಎಪ್ಪತ್ತು ಲಕ್ಷ ಹನ್ನೆರಡು ಸಾವಿರದ ಐನೂರು ರೂಪಾಯಿಗಳು ಮಾತ್ರ) ಗಳನ್ನು ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್ ದಾಬಸ್‌ಪೇಟೆ ಶಾಖೆಯಲ್ಲಿರುವ ನನ್ನ IFSC/CODE:KARB0000238 ಆರ್.ಟಿ.ಜಿ.ಎಸ್./ಎನ್.ಇ.ಎಫ್.ಟಿ.ಆಕೌಂಟ್ ನಂ:2382500100072401 ರ ವರ್ಗಾವಣೆ ಮೂಲಕ ದಿನಾಂಕ -09-2022 ರಂದು ಪಡೆದಿರುತ್ತೇನೆ.

ಸರ್ಕಾರ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಮಾಲೀಕತ್ವ/ ಹಿತಾಸಕ್ತಿಗೆ ಯಾವುದೇ ವಿವಾದಗಳು ಯಾವುದೇ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಇತ್ಯರ್ಥಕ್ಕೆ ಬಾಕಿಯಿರುವುದಿಲ್ಲ ಮತ್ತು ಈ ದಿಶೆಯಲ್ಲಿ ವಿಷಯವನ್ನು ಮುಚ್ಚಿಟ್ಟು ಪರಿಹಾರ ಪಡೆದ ಸಂಗತಿ ಅನಂತರ ಕಂಡುಬಂದಲ್ಲಿ, ಅನಂತರ ಉದ್ಭವಿಸುವ ಯಾವುದೇ ವಿವಾದಗಳನ್ನು ನನ್ನ ವೈಯಕ್ತಿಕ ಜವಾಬ್ದಾರಿ ಮೇರೆಗೆ ಬಗೆಹರಿಸಿಕೊಡುವುದಲ್ಲದೇ ನಂತರ ಪರಿಣಾಮಿಸುವ ಯಾವುದೇ ಕಾನೂನು ಕ್ರಮಗಳಿಗೆ ನನ್ನನ್ನು ಗುರಿಪಡಿಸಬಹುದಾಗಿದೆ. ಈ ಸ್ವತ್ತು ಸರ್ಕಾರದಂದು ಕಂಡುಬಂದಲ್ಲಿ ನನಗೆ ಪಾವತಿಸಿರುವ ಪರಿಹಾರವನ್ನು ವಾಪಸ್ ನೀಡುತ್ತೇನೆ. ಈ ಸ್ವತ್ತಿನ ಹಕ್ಕು ನಿಚ್ಚಳವಾಗಿದ್ದು ಯಾವುದೇ ಅನುಮಾನಗಳಿಗೆ ಎಡೆಯಿರುವುದಿಲ್ಲವೆಂದು ಘೋಷಿಸುತ್ತೇನೆ.

ನಾನು ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಪರಿಹಾರ ಪಡೆದ ನಂತರ, ಇದಕ್ಕಾಗಿ ನನ್ನ ಸ್ವತ್ತಿನ ಹಕ್ಕಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಒದಗಿಸಿರುವ ಯಾವುದೇ ದಸ್ತಾವೇಜುಗಳು ಅಥವಾ ಮಾಹಿತಿಗಳು ದೋಷಪೂರಿತ ಅಥವಾ ಸುಳ್ಳೆಂದು ಕಂಡುಬಂದು, ನಾನು ಈ ಪ್ರಕಾರ ಪಡೆಯಲು ಅಸರ್ವಸಮರ್ಥರಾಗಿದ್ದು, ಈ ಸ್ವತ್ತಿನ ಪರಿಹಾರವನ್ನು ಬೇರೆ ವ್ಯಕ್ತಿಗೆ ಪಾವತಿಸಬೇಕಾದಂತಹ ಸಂದರ್ಭ ಒದಗಿಬಂದಲ್ಲಿ ಈ ಕೆಳಗಿನಂತೆ ನನಗೆ ಪಾವತಿಸಿದ ಪೂರ್ತಿ ಅಥವಾ ಭಾಗಶಃ ಪರಿಹಾರವನ್ನು (ಸಂದರ್ಭಾನುಸಾರವಾಗಿ) ಸರ್ಕಾರಕ್ಕೆ ಹಿಂದಿರುಗಿಸಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಈ ಸಂಬಂಧ ಸರ್ಕಾರ ಅಥವಾ ಮಂಡಳಿ ಅನುಭವಿಸಿದ ನಷ್ಟ ಮತ್ತು ಭರಿಸಿದ ವೆಚ್ಚದ ಸಮೇತ ಈ ನಷ್ಟ ಭರ್ತಿಗೆ ಇರುವ ಯಾವುದೇ ಪರಿಹಾರ ಮಾರ್ಗಗಳಿಗೆ ಧಕ್ಕೆಯಾಗದಂತೆ ಸರ್ಕಾರಕ್ಕೆ ಮಂಡಳಿಗೆ ಹಿಂದಿರುಗಿಸಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಮತ್ತು ಮುಂದೆ ನಡೆಯುವ ಲೆಕ್ಕ ಪರಿಶೋಧನೆಯಲ್ಲಿ ಅಥವಾ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರಿಯು ನಡೆಸುವ ತಪಾಸಣೆ ವೇಳೆಯಲ್ಲಿ ನನಗೆ ಪಾವತಿಸಿರುವ ಪರಿಹಾರದ ಮೊತ್ತ ಗ್ರಾಹ್ಯತೆಗಿಂತ ಹೆಚ್ಚಿರುವುದು ಕಂಡುಬಂದಲ್ಲಿ ಇದನ್ನು ನಾನು ವಾಪಸ್ ಕಟ್ಟಿಕೊಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಒಂದು ವೇಳೆ, ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಭೂಕಂದಾಯ ಬಾಕಿಯಂತೆ ಸರ್ಕಾರ ವಸೂಲಿ ಮಾಡಿಕೊಳ್ಳಲು ಬಿಡುತ್ತೇನೆ.



ನಿರ್ದಲಂಗಪ್ಪ

ಈ ಸ್ವತ್ತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮುಂದೇನಾದರೂ ಯಾವುದೇ ಸ್ವರೂಪದ ವಿವಾದ ಉದ್ಭವವಾದಲ್ಲಿ ಅಥವಾ ನನ್ನ ಕುಟುಂಬದ ಸದಸ್ಯರಾಗಲಿ ಅಥವಾ ಯಾವುದೇ ವ್ಯಕ್ತಿಗಳಾಗಲಿ ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಪರಿಹಾರ ಹಂಚಿಕೆ ಕುರಿತಂತೆ ತಕರಾರು ಏತ್ತಿದಲ್ಲಿ ಅಥವಾ ಲೆಕ್ಕಾಚಾರದ ತಪ್ಪಿನಿಂದಾಗಲಿ ಅಥವಾ ತತ್ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಯಾವುದೇ ಕಾನೂನಿನ ಅವಕಾಶಗಳನ್ನು ಮೀರಿ ಗ್ರಾಹ್ಯತೆಗಿಂತ ಹೆಚ್ಚಾಗಿ ನನಗೆ ಪರಿಹಾರ ಪಾವತಿಸಲಾಗಿದೆ ಎಂದು ಕಂಡು ಬಂದಲ್ಲಿ, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಜವಾಬ್ದಾರರಲ್ಲವೆಂದು ಹಾಗೂ ಸಂದರ್ಭಾನುಸಾರ ಪೂರ್ಣ ಅಥವಾ ಭಾಗಶಃ ಪರಿಹಾರ ಧನವನ್ನು ಹಿಂದಿರುಗಿಸುವ ಮೂಲಕ ನನ್ನ ಸ್ವಂತ ವೆಚ್ಚದಲ್ಲಿ ಮೇಲೆ ಹೇಳಿದಂಥ ಯಾವುದೇ ವಿವಾದಗಳನ್ನು ಪರಿಹರಿಸಿಕೊಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

"The compensation of amount paid is in lieu of acquisition of land/s in question towards full, final settlement and the claimant/s is /are fully satisfied with the compensation amount paid under this agreement and not entitled for any amount on whatsoever, over and above the amount paid under this agreement. The sum paid is inclusive of market value, interest and all components, Further the land, owner/s, claimant/s is are forbidden/not entitled/or undertakes not/to file applications/petitions by approaching any courts/ Government / Authority/ Forum on whatsoever reasons / grounds seeking any direction on whatsoever nature".

ಅನ್ಯಥಾ ಹೇಳುವುದಾದಲ್ಲಿ ಕಾಲಾನುಕ್ರಮೇಣ ಮೇಲೆ ಹೇಳಿದ ಯಾವುದೇ ಒಂದು ಸಂದರ್ಭ ಅಥವಾ ಒಂದಕ್ಕಿಂತ ಹೆಚ್ಚು ಸಂದರ್ಭ ಉಂಟಾದಲ್ಲಿ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಅಥವಾ ಯಾವುದೇ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರ ನಿರ್ಧರಿಸುವಂತೆ ನಾನು ಪಡೆದ ಭಾಗಶಃ ಅಥವಾ ಪೂರ್ಣ ಪರಿಹಾರದ ಹಣವನ್ನು ಅಥವಾ ಅದನ್ನು ಸಂದಾಯವಾಗಬೇಕಾದ ವ್ಯಕ್ತಿಗಳಿಗೆ ಸಂದಾಯ ಮಾಡಲು ಅಥವಾ ಪೂರ್ಣ ಅಥವಾ ಭಾಗಶಃ ಮರು ಪಾವತಿಸಲು ನಾನು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

ಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಸ್ವತ್ತಿನ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ

ಜಿಲ್ಲೆ: ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ತಾಲ್ಲೂಕು: ನೆಲಮಂಗಲ ಹೋಬಳಿ: ತ್ಯಾಮಗೊಂಡ್ಲು ಗ್ರಾಮ: ಒಬಳಾಪುರ							
ಕ್ರಮ ಸಂಖ್ಯೆ	ಸರ್ವೆ ನಂ	ವಿಸ್ತೀರ್ಣ ಎ-ಗು	ಪರಿಹಾರದ ಮೊಬಲಗು	:- ಚೆಕ್ಕುಬಂದಿ :-			
				ಪೂರ್ವಕ್ಕೆ ಸ.ನಂ.	ಪಶ್ಚಿಮಕ್ಕೆ ಸ.ನಂ.	ಉತ್ತರಕ್ಕೆ ಸ.ನಂ.0	ದಕ್ಷಿಣಕ್ಕೆ ಸ.ನಂ.
1	2	3	4	5	6	7	8
1	36/2	1-11 ಪೈಕಿ	70,12,500/-	41, 36/1	34	35	ರಸ್ತೆ

ಈ ಕೆಳಕಂಡ ಸಾಕ್ಷಿಗಳ ಸಮಕ್ಷಮ ಈ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರವನ್ನು ನಾನು / ನಾವು ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ.

ದಿನಾಂಕ: -09-2022

ಸಾಕ್ಷಿಗಳು:

(1)

[Signature]
[Signature]
[Signature]

(2)

[Signature]
[Signature]
[Signature]



ನಿರ್ದಲಂಗಲ್
 (ಸ್ವತ್ತಿನ ಮಾಲೀಕರು)

ಮಾಲೀಕರು ಹಾಗೂ ಸಾಕ್ಷಿಗಳು
 ನನ್ನ ಸಮಕ್ಷಮ ಸಹಿ ಮಾಡಿರುತ್ತಾರೆ.

[Signature]
 ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ-1,
 ಕೆಎಡಿಬಿ., ಬೆಂಗಳೂರು
 5/09/22

'ಮಧ್ಯ ಸೆಕ್ಟರ್'

[Signature]
 ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ-2
 ಕೆ.ಐ.ಎ.ಡಿ.ಬಿ., (ಬಿ.ಎಂ.ಎ.ಸಿ.ಸಿ.)
 1ನೇ ಮಹಡಿ, ಪುನರ್ವಸತಿ ಅರವಿಂದ ಭವನ,
 ಸ್ವ.ಪುನರ್ವಸತಿ ರಸ್ತೆ, ಬೆಂಗಳೂರು-560001.



सत्यमेव जयते

"ಮಹಾತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

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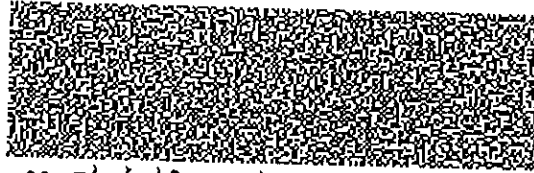
INDIA NON JUDICIAL

ANNEXURE - 'D'

Government of Karnataka

e-Stamp

Certificate No: : IN-KA18256650436747U
 Certificate Issued Date : 01-Sep-2022 04:36 PM
 Account Reference : NONACC (FI)/ kaksfcl08/ BANGALORE6/ KA-RJ
 Unique Doc. Reference : SUBIN-KAKAKSFCL0850389052163576U
 Purchased by : PARAMESH R
 Description of Document : Article 12 Bond
 Description : AGREEMENT
 Consideration Price (Rs.) : 0
 (Zero)
 First Party : PARAMESH R
 Second Party : KIADB BANGALORE
 Stamp Duty Paid By : PARAMESH R
 Stamp Duty Amount(Rs.) : 100
 (One Hundred only)



AUTHORISED SIGNATORY
 UNIVERSAL CREDIT SOLUTIONS SAHAKARI

-:: ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರ ::-

Please write or type below this line

ಸನ್ 2022 ನೇ ಸೆಪ್ಟೆಂಬರ್ ಮಾಹೆ ನೇ ದಿನಾಂಕದಂದು (-09-2022) ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು, ತ್ಯಾಮಗೊಂಡು ಹೋಬಳಿ, ಓಬಳಾಪುರ ಗ್ರಾಮ ಶ್ರೀ ಪರಮೇಶ್ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲಯ್ಯ @ ಯಲ್ಲಯ್ಯ ಓಬಳಾಪುರ ಗ್ರಾಮ, ತ್ಯಾಮಗೊಂಡು ಹೋಬಳಿ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ ವಾಸಿಯಾದ ಆದ ನಾನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಯಿಂದ ಅಧಿಕಾರ ಪಡೆದ ಅಧಿಕಾರಿಗಳ ಸಮಕ್ಷಮ ಬರೆದುಕೊಟ್ಟ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ:-

.....2/-



ಪರಮೇಶ್

Statutory Alert:

1. The authenticity of this Stamp Certificate should be verified at 'www.shcstestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Concerned Authority.

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"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನಿಯಮಿತವಾಗಿ" -2-
ಯೋಜನೆಗಾಗಿ ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966ರ ವಿಧಿ 28(4)ರಡಿ ಅಂತಿಮ ಅಧಿಸೂಚನೆ ದಿನಾಂಕ 11-08-2021 ರಂದು ಹೊರಡಿಸಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ : ಸಿಎ 242 ಎಸ್.ಪಿ.ಕ್ಯೂ(ಇ) 2020 ರನ್ವಯ ಪ್ರಕಾರ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿದ್ದು, ಈ ಸ್ವತ್ತಿಗೆ ಸಂದಾಯವಾಗಬೇಕಾದ ಪರಿಹಾರಕ್ಕೆ ನಾನು ಹಕ್ಕುದಾರನಾಗಿರುತ್ತೇನೆ. ಈ ಸ್ವತ್ತಿನ ಮೇಲೆ ನಾನು ಸಂಪೂರ್ಣ ಸ್ವಾಮ್ಯ ಹೊಂದಿದ್ದು ಹಾಗೂ ಇದರಲ್ಲಿ ನನ್ನನ್ನು ಹೊರತುಪಡಿಸಿ ಬೇರೆ ಯಾರಿಗೂ ಯಾವುದೇ ರೀತಿಯ ಹಕ್ಕಿರುವುದಿಲ್ಲ. ಮಂಡಳಿಯು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ನನ್ನ : ನಮ್ಮ ಜಮೀನಿಗೆ ಪರಿಹಾರಧನವನ್ನು ಮಂಡಳಿಯು ಎಕರೆ ಒಂದಕ್ಕೆ 1.10 ಕೋಟಿ ರೂ.ಗಳಿಗೆ ನಿಗದಿಪಡಿಸಿದ್ದು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ನನಗೆ : ನಮಗೆ ನೋಟೀಸ್ ನೀಡಿ ಪರಿಹಾರ ಪಡೆಯಲು ತಿಳಿಸಿರುತ್ತಾರೆ. ಇದರಂತೆ ಮಂಡಳಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಓಬಳಾಪುರ ಗ್ರಾಮದ ಸರ್ವೆ ಸಂ.36/2 ರಲ್ಲಿ 1-11 ಎ/ಗು ಪೈಕಿ ಜಮೀನಿಗೆ ಸಂದಾಯವಾಗ ಬೇಕಾದ ಭೂಪರಿಹಾರ ರೂ.70,12,500/- (ಎಪ್ಪತ್ತು ಲಕ್ಷ ಹನ್ನೆರಡು ಸಾವಿರದ ಐನೂರು ರೂಪಾಯಿಗಳು ಮಾತ್ರ) ಗಳನ್ನು ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್ ದಾಬಸ್‌ಪೇಟೆ ಶಾಖೆಯಲ್ಲಿರುವ ನನ್ನ IFSC/CODE:KARB0000238 ಆರ್.ಟಿ.ಜಿ.ಎಸ್./ಎನ್.ಇ.ಎಫ್.ಟಿ.ಆಕೌಂಟ್ ನಂ:2382500100068101 ರ ವರ್ಗಾವಣೆ ಮೂಲಕ ದಿನಾಂಕ -09-2022 ರಂದು ಪಡೆದಿರುತ್ತೇನೆ.

ಸರ್ಕಾರ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಮಾಲೀಕತ್ವ/ ಹಿತಾಸಕ್ತಿಗೆ ಯಾವುದೇ ವಿವಾದಗಳು ಯಾವುದೇ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಇತ್ಯರ್ಥಕ್ಕೆ ಬಾಕಿಯಿರುವುದಿಲ್ಲ ಮತ್ತು ಈ ದಿಶೆಯಲ್ಲಿ ವಿಷಯವನ್ನು ಮುಚ್ಚಿಟ್ಟು ಪರಿಹಾರ ಪಡೆದ ಸಂಗತಿ ಅನಂತರ ಕಂಡುಬಂದಲ್ಲಿ, ಅನಂತರ ಉದ್ಭವಿಸುವ ಯಾವುದೇ ವಿವಾದಗಳನ್ನು ನನ್ನ ವೈಯಕ್ತಿಕ ಜವಾಬ್ದಾರಿ ಮೇರೆಗೆ ಬಗೆಹರಿಸಿಕೊಡುವುದಲ್ಲದೇ ನಂತರ ಪರಿಣಾಮಿಸುವ ಯಾವುದೇ ಕಾನೂನು ಕ್ರಮಗಳಿಗೆ ನನ್ನನ್ನು ಗುರಿಪಡಿಸಬಹುದಾಗಿದೆ. ಈ ಸ್ವತ್ತು ಸರ್ಕಾರದಂದು ಕಂಡುಬಂದಲ್ಲಿ ನನಗೆ ಪಾವತಿಸಿರುವ ಪರಿಹಾರವನ್ನು ವಾಪಸ್ ನೀಡುತ್ತೇನೆ. ಈ ಸ್ವತ್ತಿನ ಹಕ್ಕು ನಿಚ್ಚಳವಾಗಿದ್ದು ಯಾವುದೇ ಅನುಮಾನಗಳಿಗೆ ಎಡೆಯಿರುವುದಿಲ್ಲವೆಂದು ಘೋಷಿಸುತ್ತೇನೆ.

ನಾನು ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಪರಿಹಾರ ಪಡೆದ ನಂತರ, ಇದಕ್ಕಾಗಿ ನನ್ನ ಸ್ವತ್ತಿನ ಹಕ್ಕಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಒದಗಿಸಿರುವ ಯಾವುದೇ ದಸ್ತಾವೇಜುಗಳು ಅಥವಾ ಮಾಹಿತಿಗಳು ದೋಷಪೂರಿತ ಅಥವಾ ಸುಳ್ಳೆಂದು ಕಂಡುಬಂದು, ನಾನು ಈ ಪ್ರಕಾರ ಪಡೆಯಲು ಅನರ್ಹನೆಂದು ತೀರ್ಮಾನವಾದಾಗ, ಈ ಸ್ವತ್ತಿನ ಪರಿಹಾರವನ್ನು ಬೇರೆ ವ್ಯಕ್ತಿಗೆ ಪಾವತಿಸಬೇಕಾದಂತಹ ಸಂದರ್ಭ ಒದಗಿಬಂದಲ್ಲಿ ಈ ಕೆಳಗಿನಂತೆ ನನಗೆ ಪಾವತಿಸಿದ ಪೂರ್ತಿ ಅಥವಾ ಭಾಗಶಃ ಪರಿಹಾರವನ್ನು (ಸಂದರ್ಭಾನುಸಾರವಾಗಿ) ಸರ್ಕಾರಕ್ಕೆ ಹಿಂದಿರುಗಿಸಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಈ ಸಂಬಂಧ ಸರ್ಕಾರ ಅಥವಾ ಮಂಡಳಿ ಅನುಭವಿಸಿದ ನಷ್ಟ ಮತ್ತು ಭರಿಸಿದ ವೆಚ್ಚದ ಸಮೇತ ಈ ನಷ್ಟ ಭರ್ತಿಗೆ ಇರುವ ಯಾವುದೇ ಪರಿಹಾರ ಮಾರ್ಗಗಳಿಗೆ ಧಕ್ಕೆಯಾಗದಂತೆ ಸರ್ಕಾರಕ್ಕೆ ಮಂಡಳಿಗೆ ಹಿಂದಿರುಗಿಸಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಮತ್ತು ಮುಂದೆ ನಡೆಯುವ ಲೆಕ್ಕ ಪರಿಶೋಧನೆಯಲ್ಲಿ ಅಥವಾ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರಿಯು ನಡೆಸುವ ತಪಾಸಣೆ ವೇಳೆಯಲ್ಲಿ ನನಗೆ ಪಾವತಿಸಿರುವ ಪರಿಹಾರದ ಮೊತ್ತ ಗ್ರಾಹ್ಯತೆಗಿಂತ ಹೆಚ್ಚೆಂದು ಕಂಡುಬಂದಲ್ಲಿ ಇದನ್ನು ನಾನು ವಾಪಸ್ಸು ಕಟ್ಟಿಕೊಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ. ಒಂದು ವೇಳೆ, ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಭೂಕಂದಾಯ ಬಾಕಿಯಂತೆ ಸರ್ಕಾರ ವಸೂಲಿ ಮಾಡಿಕೊಳ್ಳಲು ಒಪ್ಪಿರುತ್ತೇನೆ.



ಪರಮೇಶ್ವರ

ಈ ಸ್ವತ್ತಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮುಂದೇನಾದರೂ ಯಾವುದೇ ಸ್ವರೂಪದ ವಿವಾದ ಉದ್ಭವವಾದಲ್ಲಿ ಅಥವಾ ನನ್ನ ಕುಟುಂಬದ ಸದಸ್ಯರಾಗಲಿ ಅಥವಾ ಯಾವುದೇ ವ್ಯಕ್ತಿಗಳಾಗಲಿ ಪ್ರಸ್ತುತ ಸ್ವತ್ತಿನ ಪರಿಹಾರ ಹಂಚಿಕೆ- ಕುರಿತಂತೆ ತಕರಾರು ಏತ್ತಿದಲ್ಲಿ ಅಥವಾ ಲೆಕ್ಕಾಚಾರದ ತಪ್ಪಿನಿಂದಾಗಲಿ ಅಥವಾ ತತ್ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಯಾವುದೇ ಕಾನೂನಿನ ಅವಕಾಶಗಳನ್ನು ಮೀರಿ ಗ್ರಾಹ್ಯತೆಗಿಂತ ಹೆಚ್ಚಾಗಿ ನನಗೆ ಪರಿಹಾರ ಪಾವತಿಸಲಾಗಿದೆ ಎಂದು ಕಂಡು ಬಂದಲ್ಲಿ, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಜವಾಬ್ದಾರರಲ್ಲವೆಂದು ಹಾಗೂ ಸಂದರ್ಭಾನುಸಾರ ಪೂರ್ಣ ಅಥವಾ ಭಾಗಶಃ ಪರಿಹಾರ ಧನವನ್ನು ಹಿಂದಿರುಗಿಸುವ ಮೂಲಕ ನನ್ನ ಸ್ವಂತ ವೆಚ್ಚದಲ್ಲಿ ಮೇಲೆ ಹೇಳಿದಂಥ ಯಾವುದೇ ವಿವಾದಗಳನ್ನು ಪರಿಹರಿಸಿಕೊಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

"The compensation of amount paid is in lieu of acquisition of land/s in question towards full, final settlement and the claimant/s is /are fully satisfied with the compensation amount paid under this agreement and not entitled for any amount on whatsoever, over and above the amount paid under this agreement. The sum paid is inclusive of market value, interest and all components, Further the land, owner/s, claimant/s is are forbidden/not entitled/or undertakes not/to file applications/petitions by approaching any courts/ Government / Authority/ Forum on whatsoever reasons / grounds seeking any direction on whatsoever nature".

ಆಸಕ್ತರಾದ ಹೇಳುವುದಾದಲ್ಲಿ ಕಾಲಾನುಕ್ರಮಣ ಮೇಲೆ ಹೇಳಿದ ಯಾವುದೇ ಒಂದು ಸಂದರ್ಭ ಅಥವಾ ಒಂದಕ್ಕಿಂತ ಹೆಚ್ಚು ಸಂದರ್ಭ ಉಂಟಾದಲ್ಲಿ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಅಥವಾ ಯಾವುದೇ ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರ ನಿರ್ಧರಿಸುವಂತೆ ನಾನು ಪಡೆದ ಭಾಗಶಃ ಅಥವಾ ಪೂರ್ಣ ಪರಿಹಾರದ ಹಣವನ್ನು ಅಥವಾ ಅದನ್ನು ಸಂದಾಯವಾಗಬೇಕಾದ ವ್ಯಕ್ತಿಗಳಿಗೆ ಸಂದಾಯ ಮಾಡಲು ಅಥವಾ ಪೂರ್ಣ ಅಥವಾ ಭಾಗಶಃ ಮರು ಪಾವತಿಸಲು ನಾನು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

ಸ್ವಾವೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಸ್ವತ್ತಿನ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ.

ಜಿಲ್ಲೆ: ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ತಾಲ್ಲೂಕು: ನೆಲಮಂಗಲ ಹೋಬಳಿ: ತ್ಯಾಮಗೊಂಡ್ಲು ಗ್ರಾಮ: ಓಬಳಾಪುರ.

ಕ್ರಮ ಸಂಖ್ಯೆ	ಸರ್ವೆ ನಂ	ವಿಸ್ತೀರ್ಣ ಎ-ಗು	ಪರಿಹಾರದ ಮೊಬಲಗು	:- ಚೆಕ್ಕ್ಯುಬಂದಿ :-			
				ಪೂರ್ವಕ್ಕೆ ಸ.ನಂ.	ಪಶ್ಚಿಮಕ್ಕೆ ಸ.ನಂ.	ಉತ್ತರಕ್ಕೆ ಸ.ನಂ.0	ದಕ್ಷಿಣಕ್ಕೆ ಸ.ನಂ.
1	2	3	4	5	6	7	8
1	36/2	1-11 ಪೈಕಿ	70,12,500/-	41, 36/1	34	35	ರಸ್ತೆ

ಈ ಕೆಳಕಂಡ ಸಾಕ್ಷಿಗಳ ಸಮಕ್ಷಮ ಈ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರವನ್ನು ನಾನು / ನಾವು ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ.

ದಿನಾಂಕ: -09-2022

ಸಾಕ್ಷಿಗಳು :-

(1) Chandan Kumar S/o
Sarananatha
(owner)

(2) [Signature]
[Signature]
[Signature]



ಪ್ರತಿಜ್ಞೆ
(ಸ್ವತ್ತಿನ ಮಾಲೀಕರು)

ಮಾಲೀಕರು ಹಾಗೂ ಸಾಕ್ಷಿಗಳು
ನನ್ನ ಸಮಕ್ಷಮ ಸಹಿ ಮಾಡಿರುತ್ತಾರೆ.

[Signature]
ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ-1,
ಕೆಎವಿಡಿಬಿ., ಬೆಂಗಳೂರು.

5/09/22

ಇದ್ದಾ ಸಹಿ
[Signature]
Spl. Land Acquisition Officer-2
KIADB, (BMICP)
1st Floor, Maharshi Aravind Bhavana,
Nrupatunga Road, Bangalore-560001



सत्यमेव जयते

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

INDIA NON JUDICIAL

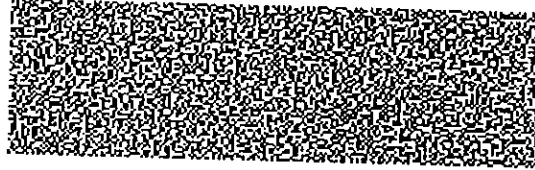
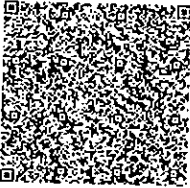
67

ANNEXURE - E

Government of Karnataka

e-Stamp

Certificate No. : IN-KA18255158663762U
 Certificate Issued Date : 01-Sep-2022 04:35 PM
 Account Reference : NONACC (FI)/ kaksfcl08/ BANGALORE6/ KA-RJ
 Unique Doc. Reference : SUBIN-KAKAKSFCL0850384910836387U
 Purchased by : SIDDALINGAPPA
 Description of Document : Article 12 Bond
 Description : AGREEMENT
 Consideration Price (Rs.) : 0
 (Zero)
 First Party : SIDDALINGAPPA
 Second Party : KIADB BANGALORE
 Stamp Duty Paid By : SIDDALINGAPPA
 Stamp Duty Amount(Rs.) : 100
 (One Hundred only)



AUTHORISED SIGNATORY
 UNIVERSAL CREDIT SOUHAARDA SAHAKARI (N)

Please write or type below this line

ಕರಾರು ಪತ್ರ :-

ಸನ್ 2022 ನೇ ಸೆಪ್ಟೆಂಬರ್ ಮಾಹೆ ನೇ ದಿನಾಂಕದಂದು (-09-2022) ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಳಿ, ಓಬಳಾಪುರ ಗ್ರಾಮ ಶ್ರೀ ಸಿದ್ದಲಿಂಗಪ್ಪ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲಯ್ಯ @ ಯಲ್ಲಯ್ಯ ಓಬಳಾಪುರ ಗ್ರಾಮ, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಳಿ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ ವಾಸಿಯಾದ ಆದ ನಾನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಯಿಂದ ಅಧಿಕಾರ ಪಡೆದ ಅಧಿಕಾರಿಗಳ ಸಮಕ್ಷಮ ಬರೆದುಕೊಟ್ಟ ಕರಾರು ಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ:-



ನಿರ್ದಲಗಲ್

.....2/-

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding.
2. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
3. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Concerned Authority.

(68)

ಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

ಹಿಂಬದಿಯ ತಪಶೀಲಿನಲ್ಲಿ ವಿವರಿಸಿರುವ ಜಮೀನಿನ ಮಾಲೀಕಳಾದ ನಾನು ಪ್ರಮಾಣ ಪೂರ್ವಕವಾಗಿ ಹೇಳುವುದೇನೆಂದರೆ, ಸದರಿ ಜಮೀನನ್ನು ಸರ್ಕಾರವು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966ರ ವಿಧಿ 28(4)ರಡಿ ಅಂತಿಮ ಅಧಿಸೂಚನೆ ದಿನಾಂಕ 11-08-2021 ರಂದು ಹೊರಡಿಸಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ : ಸಿಐ 242 ಎಸ್.ಪಿ.ಕ್ಯೂ(ಇ) 2020ರನ್ವಯ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿಗಾಗಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿದ್ದು, ಈ ಜಮೀನಿನ ಸ್ವಾಧೀನವನ್ನು ಮಂಡಳಿಗೆ ವಹಿಸಿಕೊಡಲು ಸದರಿ ಕಾಯ್ದೆಯ ವಿಧಿ 28(6) ರಡಿ ಮಾಲೀಕರಾದ ನನಗೆ ನೋಟೀಸ್ ಜಾರಿಯಾಗಿರುತ್ತದೆ. ಸರ್ಕಾರವು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಈ ಜಮೀನಿನ ಹಕ್ಕು ಮತ್ತು ಸ್ವಾಧೀನಾನುಭವ ನನ್ನಲ್ಲಿರುತ್ತದೆ. ನನ್ನನ್ನು ಹೊರತು ಈ ಸ್ವತ್ತಿನ ಮೇಲೆ ಬೇರೆ ಯಾರಿಗೂ ಯಾವುದೇ ರೀತಿಯ ಹಕ್ಕು ಇರುವುದಿಲ್ಲ.

ಹಿಂಬದಿಯ ತಪಶೀಲಿನಲ್ಲಿ ವಿವರಿಸಿರುವ ನನ್ನ ಜಮೀನಿಗೆ ದಿನಾಂಕ: 03-06-2022 ರಂದು ನಡೆದ ಮಂಡಳಿಯ ನೇ ಸಭೆಯಲ್ಲಿ ಎಕರೆ ಒಂದಕ್ಕೆ 1.10 ಕೋಟಿ ರೂ.ಗಳಿಗೆ ನಿಗದಿಪಡಿಸಿದ್ದು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ನನಗೆ : ನಮಗೆ ನೋಟೀಸ್ ನೀಡಿ ಪರಿಹಾರ ಪಡೆಯಲು ತಿಳಿಸಿರುತ್ತಾರೆ. ಇದರಂತೆ ಮಂಡಳಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಓಬಳಾಪುರ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.36/2 ರಲ್ಲಿ 1-11 ಎ/ಗು ಪೈಕಿ ಜಮೀನಿಗೆ ಸಂದಾಯವಾಗ ಬೇಕಾದ ಭೂಪರಿಹಾರ ರೂ.70,12,500/- (ಎಪ್ಪತ್ತು ಲಕ್ಷ ಹನ್ನೆರಡು ಸಾವಿರದ ಐನೂರು ರೂಪಾಯಿಗಳು ಮಾತ್ರ) ಗಳನ್ನು ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್ ದಾಬಸ್‌ಪೇಟೆ ಶಾಖೆಯಲ್ಲಿರುವ ನನ್ನ IFSC/CODE:KARB0000238 ಆರ್.ಟಿ.ಜಿ.ಎಸ್./ ಎನ್.ಇ.ಎಫ್.ಟಿ.ಆಕೌಂಟ್ ನಂ:2382500100072401 ರ ವರ್ಗಾವಣೆ ಮೂಲಕ ದಿನಾಂಕ -09-2022 ರಂದು ಪಡೆದಿರುತ್ತೇನೆ.

1. ನಾನು ಹೆಚ್ಚಿನ ಪರಿಹಾರ ಕೋರಿ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾವೆ ಹೂಡದಿರಲು ಒಪ್ಪಿರುತ್ತೇನೆ.
2. ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಮಾಲೀಕತ್ವದ ಹಕ್ಕು ನನಗೆ ಇರುವುದಿಲ್ಲವೆಂದು ಸಾಬೀತಾದಲ್ಲಿ ನನಗೆ ಸರ್ಕಾರದಿಂದ ಪಾವತಿಸಿದ ಪರಿಹಾರ ಧನವನ್ನು ಮರುಪಾವತಿಸುತ್ತೇನೆ. ಈ ಕಾರಣದಿಂದಾಗಿ ಸರ್ಕಾರ ಭರಿಸಬೇಕಾದ ಯಾವುದೇ ನಷ್ಟ ವೆಚ್ಚಗಳನ್ನು ನಾನೇ ತುಂಬಿ ಕೊಡಲು ಒಪ್ಪುವಾಗಿರುತ್ತೇನೆ.

ಒಂದು ವೇಳೆ ನಷ್ಟವೆಚ್ಚವೂ ಸೇರಿದಂತೆ ಪರಿಹಾರಧನವನ್ನು ಪೂರ್ತಿಯಾಗಿ ಸರ್ಕಾರಕ್ಕೆ ಮರು ಸಂದಾಯ ಮಾಡಲು ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಸರ್ಕಾರವು ಭೂಕಂದಾಯ ಬಾಕಿಯಂತೆ ಪರಿಗಣಿಸಿ ವಸೂಲಿ ಮಾಡಿಕೊಳ್ಳಲು ಒಪ್ಪಿರುತ್ತೇನೆ.

" The compensation of amount paid is in lieu of acquisition of land/s in question towards full, final settlement and the claimant/s is /are fully satisfied with the compensation amount paid under this agreement and not entitled for any amount on whatsoever, over and above the amount paid under this agreement. The sum paid is inclusive of market value, interest and all components, Further the land, owner/s, claimant/s is are forbidden/not entitled/or undertakes not/to file applications/petitions by approaching any courts/ Government / Authority/ Forum on whatsoever reasons / grounds seeking any direction on whatsoever nature".



ನಿರ್ದಲಗಲ್

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

69

ಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಸ್ವತ್ತಿನ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ:-

ಜಿಲ್ಲೆ: ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ತಾಲ್ಲೂಕು: ನೆಲಮಂಗಲ ಹೋಬಳಿ: ತ್ಯಾಮಗೊಂಡು ಗ್ರಾಮ: ಹಾದಿಹೊಸಹಳ್ಳಿ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಸರ್ವೆ ನಂ	ವಿಸ್ತೀರ್ಣ ಎ-ಗು	ಪರಿಹಾರದ ಮೊಬಲಗು	-:: ಚೆಕ್ಕುಬಂದಿ ::-			
				ಪೂರ್ವಕ್ಕೆ ಸ.ನಂ.	ಪಶ್ಚಿಮಕ್ಕೆ ಸ.ನಂ.	ಉತ್ತರಕ್ಕೆ ಸ.ನಂ.	ದಕ್ಷಿಣಕ್ಕೆ ಸ.ನಂ.
1	36/2	1-11 ಪೈಕಿ	70,12,500/-	41, 36/1	34	35	ರಸ್ತೆ

ಈ ಕೆಳಕಂಡ ಸಾಕ್ಷಿಗಳ ಸಮಕ್ಷಮ ಈ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರವನ್ನು ನಾನು ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ.

ದಿನಾಂಕ: -09-2022

ಸಾಕ್ಷಿಗಳು :-

1. *[Signature]*
Solephie *[Signature]*

2. *[Signature]*
Solephie *[Signature]*



ನಿವಲಂಗಪ್ಪ
(ಸ್ವತ್ತಿನ ಮಾಲೀಕರು)

[Signature]
ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಪರವಾಗಿ ನಿರ್ದೇಶಿಸಲ್ಪಟ್ಟವರು
ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ
ಕೆಇಎಡಿಬಿ, ಬೆಂಗಳೂರು.

[Signature]
Spl. Land Acquisition Officer-2
KADAB, (BMIC)

1st Floor, Maharshi Aravind Bhavana,
Nrupatunga Road, Bangalore-560001



सत्यमेव जयते

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

INDIA NON JUDICIAL

70

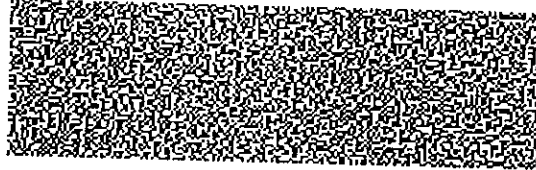
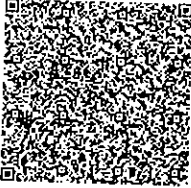
ANNEXURE - 'F'

Government of Karnataka

e-Stamp

Certificate No.	: IN-KA18257283902156U
Certificate Issued Date	: 01-Sep-2022 04:36 PM
Account Reference	: NONACC (FI)/ kaksfcl08/ BANGALORE6/ KA-RJ
Unique Doc. Reference	: SUBIN-KAKAKSFCL0850390237048746U
Purchased by	: PARAMESH R
Description of Document	: Article 12 Bond
Description	: AGREEMENT
Consideration Price (Rs.)	: 0 (Zero)
First Party	: PARAMESH R
Second Party	: KIADB BANGALORE
Stamp Duty Paid By	: PARAMESH R
Stamp Duty Amount(Rs.)	: 100 (One Hundred only)

AUTHORISED SIGNATURE
UNIVERSAL CREDIT SOLUTIONS PRIVATE LIMITED



Please write or type below this line

-:: ಕರಾರು ಪತ್ರ ::-

ಸನ್ 2022 ನೇ ಸೆಪ್ಟೆಂಬರ್ ಮಾಹೆ ನೇ ದಿನಾಂಕದಂದು (-09-2022) ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಳಿ, ಓಬಳಾಪುರ ಗ್ರಾಮ ಶ್ರೀ ಪರಮೇಶ್ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲಯ್ಯ @ ಯಲ್ಲಯ್ಯ ಓಬಳಾಪುರ ಗ್ರಾಮ, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಳಿ, ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ ವಾಸಿಯಾದ ಆದ ನಾನು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಮಂಡಳಿಯಿಂದ ಅಧಿಕಾರ ಪಡೆದ ಅಧಿಕಾರಿಗಳ ಸಮಕ್ಷಮ ಬರೆದುಕೊಟ್ಟ ಕರಾರು ಪತ್ರದ ಕ್ರಮ ಏನೆಂದರೆ:-



ಶುರವೇಶ್

.....2/-

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shclstamp.com' or using e-Stamp Mobile App of Stock Holding.
2. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
3. The onus of checking the legitimacy is on the users of the certificate.
4. In case of any discrepancy please inform the Competent Authority.

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

ಹಿಂಬದಿಯ ತಪಶೀಲಿನಲ್ಲಿ ವಿವರಿಸಿರುವ ಜಮೀನಿನ ಮಾಲೀಕಳಾದ ನಾನು ಪ್ರಮಾಣ ಪೂರ್ವಕವಾಗಿ ಹೇಳುವುದೇನೆಂದರೆ, ಸದರಿ ಜಮೀನನ್ನು ಸರ್ಕಾರವು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966ರ ವಿಧಿ 28(4)ರಡಿ ಅಂತಿಮ ಅಧಿಸೂಚನೆ ದಿನಾಂಕ 11-08-2021 ರಂದು ಹೊರಡಿಸಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ : ಸಿಐ 242 ಎಸ್.ಪಿ.ಕ್ಯೂ.(ಇ) 2020ರನ್ವಯ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿಗಾಗಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿದ್ದು, ಈ ಜಮೀನಿನ ಸ್ವಾಧೀನವನ್ನು ಮಂಡಳಿಗೆ ವಹಿಸಿಕೊಡಲು ಸದರಿ ಕಾಯ್ದೆಯ ವಿಧಿ 28(6) ರಡಿ ಮಾಲೀಕರಾದ ನನಗೆ ನೋಟೀಸ್ ಜಾರಿಯಾಗಿರುತ್ತದೆ. ಸರ್ಕಾರವು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಈ ಜಮೀನಿನ ಹಕ್ಕು ಮತ್ತು ಸ್ವಾಧೀನಾನುಭವ ನನ್ನಲ್ಲಿರುತ್ತದೆ. ನನ್ನನ್ನು ಹೊರತು ಈ ಸ್ವತ್ತಿನ ಮೇಲೆ ಬೇರೆ ಯಾರಿಗೂ ಯಾವುದೇ ರೀತಿಯ ಹಕ್ಕು ಇರುವುದಿಲ್ಲ.

ಹಿಂಬದಿಯ ತಪಶೀಲಿನಲ್ಲಿ ವಿವರಿಸಿರುವ ನನ್ನ ಜಮೀನಿಗೆ ದಿನಾಂಕ: 03-06-2022 ರಂದು ನಡೆದ ಮಂಡಳಿಯ ನೇ ಸಭೆಯಲ್ಲಿ ಎಕರೆ ಒಂದಕ್ಕೆ 1.10 ಕೋಟಿ ರೂ.ಗಳಿಗೆ ನಿಗದಿಪಡಿಸಿದ್ದು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ನನಗೆ : ನಮಗೆ ನೋಟೀಸ್ ನೀಡಿ ಪರಿಹಾರ ಪಡೆಯಲು ತಿಳಿಸಿರುತ್ತಾರೆ. ಇದರಂತೆ ಮಂಡಳಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡಿರುವ ಒಬಳಾಪುರ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.36/2 ರಲ್ಲಿ 1-11 ಎ/ಗು ಪೈಕಿ ಜಮೀನಿಗೆ ಸಂದಾಯವಾಗ ಬೇಕಾದ ಭೂಪರಿಹಾರ ರೂ.70,12,500/- (ಎಪ್ಪತ್ತು ಲಕ್ಷ ಹನ್ನೇರಡು ಸಾವಿರದ ಐನೂರು ರೂಪಾಯಿಗಳು ಮಾತ್ರ) ಗಳನ್ನು ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್ ಡಾಬಸ್‌ಪೇಟೆ ಶಾಖೆಯಲ್ಲಿರುವ ನನ್ನ IFSC/CODE:KARB0000238 ಆರ್.ಟಿ.ಜಿ.ಎಸ್./ ಎನ್.ಇ.ಎಫ್.ಟಿ.ಆಕೌಂಟ್ ನಂ:2382500100068101 ರ ವರ್ಗಾವಣೆ ಮೂಲಕ ದಿನಾಂಕ -09-2022 ರಂದು ಪಡೆದಿರುತ್ತೇನೆ.

1. ನಾನು ಹೆಚ್ಚಿನ ಪರಿಹಾರ ಕೋರಿ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾವೆ ಹೂಡದಿರಲು ಒಪ್ಪಿರುತ್ತೇನೆ.
2. ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಮಾಲೀಕತ್ವದ ಹಕ್ಕು ನನಗೆ ಇರುವುದಿಲ್ಲವೆಂದು ಸಾಬೀತಾದಲ್ಲಿ ನನಗೆ ಸರ್ಕಾರದಿಂದ ಪಾವತಿಸಿದ ಪರಿಹಾರ ಧನವನ್ನು ಮರುಪಾವತಿಸುತ್ತೇನೆ. ಈ ಕಾರಣದಿಂದಾಗಿ ಸರ್ಕಾರ ಭರಿಸಬೇಕಾದ ಯಾವುದೇ ನಷ್ಟ ವೆಚ್ಚಗಳನ್ನು ನಾನೇ ತುಂಬಿ ಕೊಡಲು ಬದ್ಧನಾಗಿರುತ್ತೇನೆ.

ಒಂದು ವೇಳೆ ನಷ್ಟವೆಚ್ಚವೂ ಸೇರಿದಂತೆ ಪರಿಹಾರಧನವನ್ನು ಪೂರ್ತಿಯಾಗಿ ಸರ್ಕಾರಕ್ಕೆ ಮರು ಸಂದಾಯ ಮಾಡಲು ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಸರ್ಕಾರವು ಭೂಕಂದಾಯ ಬಾಕಿಯಂತೆ ಪರಿಗಣಿಸಿ ವಸೂಲಿ ಮಾಡಿಕೊಳ್ಳಲು ಒಪ್ಪಿರುತ್ತೇನೆ.

" The compensation of amount paid is in lieu of acquisition of land/s in question towards full, final settlement and the claimant/s is /are fully satisfied with the compensation amount paid under this agreement and not entitled for any amount on whatsoever, over and above the amount paid under this agreement. The sum paid is inclusive of market value, interest and all components, Further the land, owner/s, claimant/s is are forbidden/not entitled/or undertakes not/to file applications/petitions by approaching any courts/ Government / Authority/ Forum on whatsoever reasons / grounds seeking any direction on whatsoever nature".



ಪ್ರತಿಜ್ಞೆ

"ಸೂಚಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

72

ಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಸ್ವತ್ತಿನ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ:-

ಜಿಲ್ಲೆ: ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ತಾಲ್ಲೂಕು: ನೆಲಮಂಗಲ ಹೋಬಳಿ: ತ್ಯಾಮಗೊಂಡು ಗ್ರಾಮ: ಹಾದಿಹೊಸಹಳ್ಳಿ

ಕ್ರಮ ಸಂಖ್ಯೆ	ಸರ್ವೆ ನಂ	ವಿಸ್ತೀರ್ಣ ಎ-ಗು	ಪರಿಹಾರದ ಮೊಬಲಗು	-:: ಚೆಕ್ಕುಬಂದಿ ::-			
				ಪೂರ್ವಕ್ಕೆ ಸ.ನಂ.	ಪಶ್ಚಿಮಕ್ಕೆ ಸ.ನಂ.	ಉತ್ತರಕ್ಕೆ ಸ.ನಂ.	ದಕ್ಷಿಣಕ್ಕೆ ಸ.ನಂ.
1	36/2	1-11 ಪೈಕಿ	70,12,500/-	41, 36/1	34	35	ರಸ್ತೆ

ಈ ಕೆಳಕಂಡ ಸಾಕ್ಷಿಗಳ ಸಮಕ್ಷಮ ಈ ನಷ್ಟಭರ್ತಿ ಪ್ರತಿಬಂಧ ಪತ್ರವನ್ನು ನಾನು ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ.

ದಿನಾಂಕ: -09-2022

ಸಾಕ್ಷಿಗಳು :-

1. *Omendra Kumar S/o*
1/11, 36/2, 36/1
ಬೆಂಗಳೂರು.



ಚರವೇಳೆ

(ಸ್ವತ್ತಿನ ಮಾಲೀಕರು)

2. *1/11, 36/2, 36/1*
ಬೆಂಗಳೂರು.

[Signature]
ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಪರವಾಗಿ ನಿರ್ದೇಶಿಸಲ್ಪಟ್ಟವರು
ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ-1,
ಕೆಎಎಡಿಬಿ, ಬೆಂಗಳೂರು.

'ಯಶಸ್ವಿ ಸೆಕ್ಯು'

[Signature]
Sp. Land Acquisition Officer-2
KIADB, (BMICP)
1st Floor, Maharsni Aravind Bhavana,
Nrupatunga Road, Bangalore-560001

KARNATAKA INDUSTRIAL AREAS DEVELOPMENT BOARD ANNEXURE-6

Office of the Special Land Acquisition Officer-1 KIADB, No.39, Shanthi Gruha, Bharath Scouts & Guide Building, 4th floor, Palace Road, Bangalore-560001

Date: 7/3

Statement showing the Bank details of compensation paid to the land losers through RTGS/NEFT

Name of the LA/SUC:MMLP PROJECT DABASPETE INDUSTRIAL AREA				Release Order No & Date:ಕೆಎಡಿಬಿ/ಕೆಂ.ಕ/ಭೂಸ್ವಾ/(ಬೆಂ1)/2601/ಬಿ/8612/2022-23, ದಿನಾಂಕ: 18-08-2022				Date of publication of 28(4) Notification: CI 242 SPQ (E) 2020, DATE: 11-08-2021			District: BENGALURU RURAL	Taluk: NELAMANGALA
Sl. No	Name of the Village	Sy.No / Khat a No.	Extent (A-G)	Name of the Khatedar	Name of the Bank & Address	IFSC Code of the Branch	Type of Account	Bank Account No.	MICR Code	Amount to be transfereed (Rs)	Signature of Khatedar about the correctness of Bank Account No. & IFSC Code	Mention valid reasons if name of the Khatedar differs from Name mentioned in the 28(4) notification
1	2	3	4	5	6	7	8	9	10	11	12	13
1	OBALA PURA	36/2	1-11	SRI.SIDDALINGA PPA S/o LATE DODDYALLAPPA @ YALLAIAH	KARNATAKA BANK DABASPETE BRANCH	KARB00 00238	SB	2382500100 072401		70,12,500	ನಿರ್ದಲಂಗಲ್	
				SRI. PARAMESH S/o LATE RUDRAIAH	KARNATAKA BANK DABASPETE BRANCH	KARB000 0238	SB	2382500100 068101		70,12,500	ಕುಮ್ಲೆಶ್	
Total			1-11							1,40,25,000/-		

Nature of Payment: Land Payment

(Total Amount In words: One Crore Fourty lakhs Twenty Five Thousand only.

Declaration: This is to certify that the name of the Khatedar, Sy.No, Extent, Amount and Bank details as mentioned above are correct.

Assistant

Manager

Special Land Acquisition Officer-1,
KIADB, Palace Road,
Bangalore 5/09/22

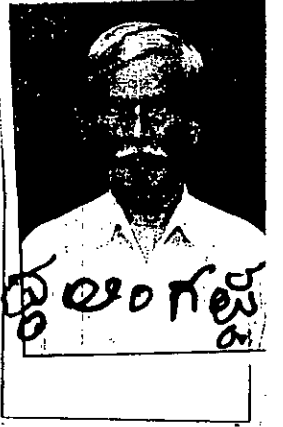
"ಕೆಎಡಿಬಿ ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

"ಮಾಹಿತಿ ಹಕ್ಕು ಕಾಯ್ದೆ 2005ರಡಿ ನೀಡಲಾಗಿದೆ"

ANNEXURE - 'H'

-: ಭೂಪರಿಹಾರ ಧನ ಪಡೆದ ಬಗ್ಗೆ ರಶೀದಿ :-

(74)



ಹಣ ಪಾವತಿ ವಹಿಯಲ್ಲಿನ ಪುಟ ಸಂಖ್ಯೆ: 42

ಚಿಕ್ಕೋಡು, ಜಿಲ್ಲೆ, ಸೀಲಾಂಗಲ ತಾಲ್ಲೂಕು, ಶ್ರೀಮದ್ಭೂಮಿ ನಿರ್ಮಾಣ ಸಂಸ್ಥೆ

ಹೋಬಳಿ ಬಿಬಿಎಸ್ ಗ್ರಾಮದ ಸಂಖ್ಯೆ: 36/9 ರ ವಿಸ್ತೀರ್ಣ 1-1 ಕ್ಷೇತ್ರ

ಜಮೀನನ್ನು ಸರ್ಕಾರವು ಕರ್ನಾಟಕ ಕೈಗಾರಿಕಾ ಪ್ರದೇಶಾಭಿವೃದ್ಧಿ ಕಾಯ್ದೆ 1966ರ ಏಡಿ 28(4)ರಡಿ ಹೊರಡಿಸಿರುವ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ:ಸಿಎ 949 ಎಸ್‌ಪಿಕ್ಯೂ(ಎ) 9090 ದಿನಾಂಕ: 11/08/2011ರನ್ವಯ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲಾಗಿದೆ

(ಈ ಅಧಿಸೂಚನೆ ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದ ಭಾಗ IIIರ ಪುಟ ಸಂಖ್ಯೆ: . . .ರಲ್ಲಿ ಪ್ರಕಟವಾಗಿದೆ)

ಚಿಕ್ಕೋಡು, ಜಿಲ್ಲೆ, ಸೀಲಾಂಗಲ ತಾಲ್ಲೂಕು, ಶ್ರೀಮದ್ಭೂಮಿ ನಿರ್ಮಾಣ ಸಂಸ್ಥೆ ಬಿಬಿಎಸ್ ಗ್ರಾಮದಲ್ಲಿ ವಾಸವಾಗಿರುವ ಶ್ರೀ/ಶ್ರೀಮತಿ ರಿಡ್ಡಿಲಾಂಗಲಿ ಬಿಬಿಎಸ್ ಸ್ವಾಧೀನವಾಗುವ ನಾನು ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಟ್ಟ ಜಮೀನಿನ ಭೂಪರಿಹಾರ ಎಕರೆಯೊಂದಕ್ಕೆ ರೂ. 1.10 ಕ್ಷೇತ್ರದಿಂದ ಸ್ವಾಧೀನವಾಗಿರುವ ವಿಸ್ತೀರ್ಣದ ಬಾಬು ರೂ. 70,12,500/- (ರೂ.ಎಪ್ಪತ್ತೈದು ಲಕ್ಷ 12 ಸಾವಿರ 500 ರೂಪಾಯಿ)ಗಳನ್ನು ಮಂಡಳಿಯ

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು-1ರವರಿಂದ RTGS/NEFT ವರ್ಗಾವಣೆ ಮೂಲಕ ಈ ದಿವಸ ಪಡೆದಿರುತ್ತೇನೆ.

1. ಒಪಂದದ ಧರದಂತೆ ಭೂಪರಿಹಾರದ ಮೊತ್ತ: ರೂ. 70,12,500/-
2. ಮೂಲ ಲವಾರ್ಡ್‌ನಂತೆ ಒಟ್ಟು ಭೂಪರಿಹಾರದ ಮೊತ್ತ
3. ಮರ ಮಾಲ್ಗೆ ಕಟ್ಟಡ ವಿದ್ಯಾಸಂಸ್ಥೆಗಳ ಮಾಲ್ಗೆ
4. ಇತರೆ

Bank Name:	ಕರ್ನಾಟಕ ಬ್ಯಾಂಕ್
Branch Name:	ಮಂಡ್ಯಪೇಟೆ
Branch code:	
IFSC Code:	KARB0000238
MICR No:	
Account No:	9382500/00072401
Name of the Account Holder	ರಿಡ್ಡಿಲಾಂಗಲಿ

"ನನ್ನ ಸಮಕ್ಷಮ ಸಹಿ ಮಾಡಿದೆ"

(Signature)

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು-1,

ಕೆ.ಎ.ಎ.ಡಿ.ಬಿ, ಅರಮನೆ ರಸ್ತೆ,

ಬೆಂಗಳೂರು.

ನಿರ್ದಲಂಗಲ

ಭೂಪರಿಹಾರ ಪಡೆದವರ ಸಹಿ/

ಭೂಮಾಲೀಕರನ್ನು ಗುರುತಿಸಿದೆ

(ಗುರುತಿಸಿದವರ ಸಹಿ ಮತ್ತು ವಿಳಾಸ)

1. Chandra Kumar 10, Basavara Obapuram

9901 248290

2.

(Signature) mohans s/o Sridhar, Ofolapure, 84832344

ಸ್ಪಿ. ಸಂಪನ್ಮೂಲ ಸಹಿ
Sp. Acquisition Officer-2
KIADB, (BMICP)
1st Floor, Maharshi Aravind Bhavana,
Nrupatunga Road, Bangalore-560001

Payment Voucher

75

11

1776

ಹೋಬಳಿ ಬಿಜ್ಜನಕೆರೆ ಗ್ರಾಮದ ಸ.ನಂ: 36/2 ರ ವಿಸ್ತೀರ್ಣ 1-11 ಚ.ಕಿ.

(ಈ ಅಧಿಸೂಚನೆ ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರದ ಭಾಗ IIIರ ಮುಖ್ಯ ಸಂಖ್ಯೆ: ೨೨೨೨ರಲ್ಲಿ ಪ್ರಕಟವಾಗಿದೆ)

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು-1ರವರಿಂದ RTGS/NEFT ವರ್ಗಾವಣೆ ಮೂಲಕ ಈ ದಿವಸ ಪಡೆದಿರುತ್ತೇನೆ.

1. ಒಪಂದದ ಧರದಂತೆ ಭೂಪರಿಹಾರದ ಮೊತ್ತ:
ರೂ. 70,19,500
2. ಮೂಲ ಲವಾರ್ಡ್‌ನಂತೆ ಒಟ್ಟು ಭೂಪರಿಹಾರದ ಮೊತ್ತ
3. ಮರ ಮಾಲ್ಕಿ ಕಟ್ಟಡ ವಿನ್ಯಾಸಗಳ ಮೌಲ್ಯ
4. ಇತರೆ:

Bank Name:	ಕರ್ನಾಟಕ ಸಂಘ
Branch Name:	ಮಾಣಿಕ್ಯ ೨೭
Branch code:	
IFSC Code:	KARB0000238
MICR No:	
Account No:	2382500/00068101
Name of the Account Holder	ಶ್ರೀಮತಿ

“ನನ್ನ ಸಮಕ್ಷಮ ಸಹಿ ಮಾಡಿದೆ”

Price

ಎಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು -
ಕೆ.ಎ.ಎ.ಡಿ.ಬಿ. ಅಶೇಷ ರಸ್ತೆ
ಬೆಂಗಳೂರು.

ಪ್ರಸಾದ್
ಭೂಪರಿಹಾರ ಪಡೆದವರ ಸಹಿ/-

ಭೂಮಾಲೀಕರನ್ನು ಗುರುತಿಸಿದ
(ಗುರ್ತಿಸಿದವರ ಸಹಿ ಮತ್ತು ವಿಳಾಸ)

ဝိညာဏ်နိဗ္ဗာန်

(Spl. Land Acquisition Officer-2
KIADB, (BMICA) S/H

1st Floor, Maharshi Aravind Bhavana,
Mrupatunga Road, Bangalore-560001

Payment Voucher

2

Chambre de commerce / 10/6 ans
Obat pour

Wm. S. S. S.

S. CHENNAI RAYA REDDY, B.A., B.L.,

ADVOCATE

ANNEXURE- K



No. 16, (Upstairs) 6th Main Road
Opp. Gubbi Veeranna Ranga Mandira,
Gandhi Nagar, Bengaluru-560 009.
Phone : 080 - 22250834 43020802
Mob : 98451 45299
Email: mukundreddy123@gmail.com

LN 6/2022

12-12-2022

- [1] Sri Siddalingappa, son of late Doddayellaiah, residing at Obalapura village, Thyamagondlu hobli, Bengaluru rural district - 562 132
- [2] Sri Paramesh, son of Chikkayellaiah, residing at Obalapura village, Thyamagondlu hobli, Bengaluru rural district 562132
- [3] The State of Karnataka, represented by its Secretary, Commerce and Industries Department, Vikasa Soudha, Dr. Ambedkar Road, Bengaluru 560 001
- [4] The Special Land Acquisition Officer, KIADB, No. 39, Shanthi Gruha, Bharath Scouts and Guides building, 4th floor, Palace Road, Bengaluru 560 001

Sirs,

Under instructions from my clients [1], Smt. Sarojamma, wife of late Shivarudraiah, [2] Sri Shivu, son of late Shivarudraiah and [3] Sri Veerabhadra, son of late Shivarudraiah, all are residing at Hadihosahalli village, Thyamagondlu hobli, Nelamangala taluk, Bengaluru rural district, I issue this notice to you as follows;

1. My clients state that one Rudraiah was the propositus of their family. The said Rudraiah had five sons namely Veerabhadraiah, Chikkayellaiah, Yellaiah, Eraiah and Gangaiah. Rudraiah had immovable properties and the same were divided among his five sons. After the partition, Gangaiah died issueless. After the death of Gangaiah the properties allotted to Gangaiah were again partitioned by his four brothers. Under the partition among other properties land bearing survey number 36 to the extent of 13 guntas was allotted to the share of Veerabhadraiah. The said Veerabhadraiah, Chikkayellaiah, Yellaiah and Eraiah were in possession of their respective properties. Shivarudraiah is

Sh

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-2-

the only son of Veerabhadraiah. After the death of Veerabhadraiah, the said Shivarudraiah has succeeded the estate and became the absolute owner and in possession and enjoyment of the said properties.

3. My clients state that Chikkayellaiah had three sons i.e. Siddagangaiah, Rudraiah and Veerabhadraiah. Under the family partition, the said Chikkayellaiah got the property bearing survey number 36 measuring 20 guntas, survey number 37/1 measuring 27 guntas, survey number 18/2B measuring 10 guntas, at Obalapura. Similarly he also got properties in survey number 1/3 measuring 15 guntas, survey number 20/2 measuring 26 guntas, survey number 11/1 measuring 3 acres 20 guntas, survey number 13/67 measuring 20 guntas and in survey number 13/8 measuring 1 acre 20 guntas of Hadihosahalli village. Apart from that Chikkayellaiah had also acquired 20 guntas in survey number 20/2. My clients state that the said Siddagangaiah and his brothers have been in possession and enjoyment of the properties allotted to the share of Chikkayellaiah. But the said Siddagangaiah's family has no other properties at Hadihosahalli and Obalapura.

4. My clients state that the husband of my first client and father of my rest of the clients 2 and 3 filed O.S. No. 49/2009 on the file of the Senior Civil Judge at Nelamangala against Siddalingaiah son of Chikkayellappa also called as Chikkayellaiah for declaration to declare that he is the absolute owner of the suit schedule properties of which survey number 36 measuring 13 guntas situated at Obalapura village, Thyamagondlu hobli, Bengaluru rural district is one mentioned in suit schedule 27. The suit schedule items includes 13 guntas of land in survey number 36 bounded on the **EAST by:** Rudraiah property, **WEST by:** Papanna's property, **NORTH by:** Kaluve and **SOUTH BY:** Siddalingappa's property.

5. The said suit in O.S. No. 49/2009 after contest was decreed as per judgment dated 29.9.2018. By which it is declared among other properties the land bearing survey

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-3-

number 36 measuring 13 guntas referred to above as owner in possession of the said land also.

6. During the pendency of O.S. No. 49/2009 the husband of my first client died and the legal representatives being my clients were brought on record. My clients state that the judgment and decree have become final. My clients state that immediately after the said suit was decreed they by oversight did not move the revenue authorities for bringing up their names in the mutation and RTC. However, on 4.2.2021 my clients have filed petition to Tahsildar, Nelamangala for bringing their names in mutation and RTC in accordance with the judgment and decree passed in O.S. No. 49/2009 referred to above and the matter is pending.

7. My clients state that the notifications were issued under Section 28[1] of the Karnataka Industrial Area Development Board Act for acquiring land bearing survey number 36 to the extent of 2 acres 32 guntas showing the name of Doddayellaiah, Chikkayellaiah and others. The Preliminary notification was issued under Section 28[1] of the KIADB Act in No. CI 242 SPQ [E]2020 dated 8.12.2020 for the purposes of multi Modal Logistics park [MMLP] and the final notification was issued in Karnataka Special Gazette - part 3 pages 67879 to 7054 in No. CI 242 SCQ[E] 2020 dated 8.12.2020 which is published on 11.8.2021. In the final notification published in Karnataka Gazette dated 11.8.2021 in column No. 3 the name of the owners of the land bearing survey number 36/2 is mentioned as "**Doddayellaiah, Chikkayellaiah**" who had died long back. The notifications in question are issued in the name of dead persons, without proper enquiry mechanically the names shown in the notifications mentioned on the basis of entries available in RTC without verifying such persons are dead or alive. The subordinates of 4th respondent have without proper enquiry have mechanically copied both the names found in the RTC relating to land in question and hence they are not binding on the owners.

8. My clients state that one Siddalingappa son of Doddayellaiah son of Doddayellaiah @ Yellaiah of Obalapura and Paramesha son of Rudraiah, grandson of Chikkayellaiah both have colluded together and claimed entire compensation payable in respect of land bearing survey number 36/2 measuring 1 acre 11 guntas stating that the entire extent belong to them solely. One Rudraiah was the propositus he had 5 sons by name Veerabhadraiah, Chikkayellaiah, Yellaiah, Eraiah and Gangaiah. Immovable properties owned by Rudraiah were divided among 5 sons. After partition Gangaiah died issueless. After his death the properties allotted to Gangaiah were again partitioned by his 4 brothers. Under the partition land bearing survey number 36/2 to the extent of 13 guntas fell to the share of Veerabhadraiah, the father -in-law of my first client. After the death of Veerabhadraiah the husband of my first client and father of my clients 2 and 3 succeeded to the estate of Veerabhadraiah became absolute owners of all the properties including land bearing survey number 36 measuring 13 guntas.

9. Since the said Siddalingappa son of Chikkayellappa raised untenable dispute in regard to certain properties including that of survey number 36/2 measuring 13 guntas situated at Obalapura village, the husband of my first client and father of my clients 2 and 3 filed a suit in O.S. No. 49/2009 on the file of the hon'ble Senior Civil Judge of Nelamangala praying for declaration and other reliefs in respect of the lands to which my first client's husband inherited which include survey number 36 situated at Obalapura village, Thyamagondlu hobli, Nelamangala taluk and the same is bounded on the **East by:** Rudraiah's property, **west by:** Papanna's property, **north by;** Kaluve, **south by:** Siddalingappa's property. After contest the hon'ble court was pleased to decree the suit as per judgment and decree dated 29.9.2018 passed in O.S. No. 49/2009. A true copy of the judgment is also enclosed to this notice. Thus, it is clear that the grandson of Chikkayellaiah by name Paramesh son of Rudraiah and Siddalingappa son of Doddayellappa by fraud claim that they are owners of the

67

-5-

entire extent of the property bearing survey number 36/2 referred to above. The said Paramesh in the indemnity bond executed by him which is submitted to the Special Land Acquisition Officer who has described himself as "ಶ್ರೀ ಪರಮೇಶ್ ಬಿನ್ ಲೇಟ್ ದೊಡ್ಡಯಲ್ಲ @ ಯಲ್ಲಯ್ಯ, ಓಬಲ್ಕಾಪುರ ವಿಲ್ಲೇಜ್, ತ್ಯಾಮಗೊಂಡ್ಲು ಹೋಬಳಿ, ನೆಲಮಂಗಲ ತಾಲೂಕು" which is admittedly false and that Paramesh has to be dealt with accordingly for having created the document in respect of immovable property which amounts to be punishable under the provisions of the Indian Penal Code. The 4th of you SLAO has collected some documents before paying compensation amount to the said Paramesh son of late Rudraiah and Siddalingappa son of late Doddayellappa. The 4th of you out of the total amount of compensation awarded being 1,40,25,000/- Half of it being Rs. 70,12,500/- was paid to Siddalingappa and another half to Paramesh. Both the parties have received the compensation amount payable to my clients towards 13 guntas of compensation and liable to be refunded to my clients.

10. My clients state that on account of not investigating the ownership properly by the 4th of you and the said Siddalingappa and Paramesh having suppressed true facts and obtained compensation. They have executed indemnity bonds stating that in case if the information furnished by them are false and not entitled to receive the entire compensation and in case it has to be paid to some other person the entire or any part of compensation according to the circumstances will be returned. The parties have undertaken to refund the amount to the Government. In addition to it, loans and expenses have also to be paid etc.

11. In view of the above facts the State, 4th respondent and the respondents 1 and 2 are liable to refund the entire amount payable towards compensation in respect of 13 guntas of land in survey number 36/2 of Obalapura is liable to be paid to my clients with interest from the date of receipt of the compensation being 5.9.2022 as per statement dated 5.9.2022 executed by the 4th of you and the Manager who

[Signature]

(81)

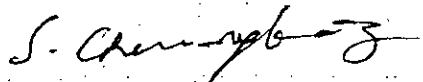
-6-

have certified that "**this is to certify that the name of the khathedar, survey number, extent, amount and bank details as mentioned above is correct**". My clients hereby calls upon all of you to pay the compensation payable in respect of 13 guntas of land in survey number 36/2 referred to above with interest and other expenses with 20 days from the date of receipt of this notice failing which my clients will be constrained to institute both civil and criminal proceedings against all of you for all the reliefs that are open to them under law including for instituting proceedings for recovery of the amount with costs, interest etc. at the risk and cost of State and the above said persons.

12. This notice be treated as notice issued under Section 80 CPC to 3 and 4 of you.

13. The charges of this notice are Rs. 15,000/- only which all of you are liable to pay to my clients.

Yours faithfully


[S. Chennaraya Reddy]
Advocate



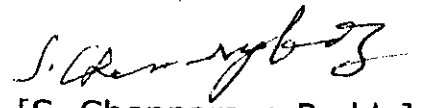
LN 6 /2022

22-12-2022

- [3] The State of Karnataka,
represented by its
Secretary, Commerce and
Industries Department,
Vikasa Soudha,
Dr. Ambedkar Road,
Bengaluru 560 001
- [4] The Special Land
Acquisition Officer, KIADB,
No. 39, Shanthi Gruha,
Bharath Scouts and
Guides building, 4th floor,
Palace Road, Bengaluru
560 001

MEMO

In continuation of legal notice dated 12-12-2022, the undersigned advocate states that by oversight the copy of the judgment and decree dated 29.9.2018 passed in O.S. No. 49/2009 could not be enclosed along with the legal notice. Hence, a copy of the above judgment is enclosed.


[S. Chennaraya Reddy]
Advocate

ANNEXURE - M

83

LN No. 6 /2022

BY RPAD



S. CHENNARAYA REDDY, B.A., B.L.,

ADVOCATE

No. 16, (Upstairs) 6th Main Road
Opp: Gubbi Veeranna Ranga Mandira,
Gandhi Nagar, Bengaluru-560 009.
Phone : 080 - 22250834-43020802
Mob : 98451 45299
Email: mukundreddy123@gmail.com

Sri Siddalingappa,
son of late Doddayellaiah,
residing at Obalapura village,
Thyamagendlu hobli,
Bengaluru rural district - 562 132

*No such person is
known to
sender*



ANNEXURE - M-1

478

LN NO. 6 / 2022

BY RPAD



S. CHENNARAYA REDDY, B.A., B.L.,

ADVOCATE

No. 16, (Upstairs) 6th Main Road
Opp. Gubbli Veeranna Ranga Mandira,
Gandhi Nagar, Bengaluru-560 009.
Phone : 080 - 22250636 4 3020802
Mob : 98451 45299
Email: mukulreddy123@gmail.com

Sri Paramesh,
son of Chikkayellaiah,
residing at Obalapura village,
Hyamagondlu hobli,
Bengaluru rural district
562132

*No Sach perase
in the return to sender*



ANNEXURE - 'N'

85

आर.पी.54/R.P.-54

भारतीय डाक विभाग DEPARTMENT OF POSTS, INDIA प्राप्ति-स्वीकृति / ACKNOWLEDGEMENT



- * रजिस्ट्री / बीमाकृत पत्र / पार्सल प्राप्त हुआ
- * Received Registered / Insured Letter / Parcel /

* अनावश्यक को काट दिया जाए
* Strike out if not relevant

क्रमांक / No. _____ तारीख / Dated _____ का / of _____

* बीमे का मूल्य रुपयों में ₹ 30,000/-

* Insured for ₹ 30,000/-

पाने वाले श्री. गणेश दास

Addressed to श्री. गणेश दास, 10, Main Road, ...

वितरण डाकघर की तारीख-मोहर
Date Stamp of office of Delivery

हस्ताक्षर और नाम / Signature and Name

ANNEXURE - 'P'

86

RK744349434IN IVR:8275744349434



RL K. G. ROAD S.O <560009>

Counter No:1,14/12/2022,12:34

To:THE SPECIAL L, KIADB

PIN:560001, Bengaluru G.P.O.

From:S CHENNAIRAY, ADVOCATE

Wt:22gms

Ant:0.00PS:30.00

<Track on www.indiapost.gov.in>

<Dial 18002666868> <Wear Masks, Stay Safe>



RK744349686IN IVR:8275744349686

RL K. G. ROAD S.O <560009>

Counter No:1,14/12/2022,12:34

To:SRI PARAMESH,.

PIN:562132, Tyamagondlu S.O

From:S CHENNAIRAY, ADVOCATE

Wt:24gms

Ant:0.00PS:30.00

<Track on www.indiapost.gov.in>

<Dial 18002666868> <Wear Masks, Stay Safe>



RK744349448IN IVR:8275744349448

RL K. G. ROAD S.O <560009>

Counter No:1,14/12/2022,12:34

To:THE SECRETARY,.

PIN:560001, Bengaluru G.P.O.

From:S CHENNAIRAY, ADVOCATE

Wt:24gms

Ant:0.00PS:30.00

<Track on www.indiapost.gov.in>

<Dial 18002666868> <Wear Masks, Stay Safe>



RK744349567IN IVR:8275744349567

RL K. G. ROAD S.O <560009>

Counter No:1,14/12/2022,12:34

To:SRI SIDDALINGAPPA,.

PIN:562132, Tyamagondlu S.O

From:S CHENNAIRAY, ADVOCATE

Wt:24gms

Ant:0.00PS:30.00

<Track on www.indiapost.gov.in>

87

sarveshni@gmail.com, Nasir

sarveshni@gmail.com, Nasir

<Dial 18002666868> <Wear Masks>



RK743121654IN IVR:8275743121654

RL K. G. ROAD S.O <560009>

Counter No:1,27/12/2022,12:04

To:THE STATE OF ,COMMERCE AND IND

PIN:560001, Bengaluru G.P.O.

From:S CHENNAIYAREDDY,ADVOCATE

Wt:108gms

Amt:20.00(Cash)PS:30.00

<Track on www.indiapost.gov.in>

<Dial 18002666868> <Wear Masks>



RK743121668IN IVR:8275743121668

RL K. G. ROAD S.O <560009>

Counter No:1,27/12/2022,12:04

To:THE SPECIAL ,KIADB

PIN:560001, Bengaluru G.P.O.

From:S CHENNAIYAREDDY,ADVOCATE

Wt:108gms

Amt:20.00(Cash)PS:30.00

<Track on www.indiapost.gov.in>

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